
**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF OREGON
PORTLAND DIVISION**

ASHLE' PENN,
Plaintiff,

v.

WASHINGTON COUNTY, OREGON;
DEPUTY DAVID RAMBIN, individually
and in his official capacity for prospective relief only;
ALICIA GERTEN, individually and in her official capacity for prospective relief only;
JUDGE BRANDON THOMPSON, individually and in his official capacity for prospective relief only;
MOLLY BINEHAM, individually and in her official capacity for prospective relief only;
SHEILA CLARK, individually and in her official capacity for prospective relief only;
AARON MENDES, individually;
JUDGE MICHELLE C. RINI, individually;
DAVID MILNE, individually;
KIMBERLY BECK, individually;
SONYA FAULKNER, individually;
HEATHER KIDDO, individually;
NICOLE BENNETT, individually;
DOES 1–10, individually,

Defendants.

Case No.:

**COMPLAINT FOR
VIOLATION OF CIVIL
RIGHTS**

(42 U.S.C. § 1983)

Violation of First, Fourth, and
Fourteenth Amendment Rights

JURY TRIAL DEMANDED

PRELIMINARY STATEMENT

1. This case is about one error and a county's decision to protect it rather than correct it. On September 18, 2024, a single Washington County deputy misidentified Plaintiff—a Black woman—mistaking her to be a suspect who committed theft the night before on September 17, 2025. Plaintiff does not resemble the suspect she was mistaken for in any respect other than race. Her arrest occurred without a warrant and without probable cause. What came after was not a series of unrelated mistakes. As the error surfaced, each Washington County actor who touched it—the

Sheriff's Office, the District Attorney, the Circuit Court, Community Corrections, and County Human Resources—acted to insulate the original error from correction rather than to remedy it. The fourteen claims that follow are therefore not fourteen separate grievances. They are one constitutional error and the county's successive, documented efforts to contain it—the definition of a municipal custom under *Monell v. Dep't of Soc. Servs.*, 436 U.S. 658 (1978).

2. This Complaint rests on documentary admissions by County and court officials themselves, and those admissions establish not a mere factual dispute but a pattern of constitutional breakdown documented in the government's own records. Plaintiff does not ask the Court to credit Plaintiff's word over the County's. Deputy Rabin's own supplemental report, filed December 27, 2024—nearly 100 days later—concedes in writing that Plaintiff truly was *not* the person suspected of committing theft on September 17th (emphasis added). The State's own discovery production contains a probable cause order that is entirely blank—no finding, no signature, no date—documentary proof that no neutral magistrate ever authorized Plaintiff's detention. The Washington County Trial Court Administrator confirmed in writing that no valid Presiding Judge Order authorized the grand jury that indicted Plaintiff. And Defendant Mendes' own denial letter states, in writing, that Plaintiff's public records request was refused because of her associations and her interest in providing legal assistance to others. At each step, the government's own paper—not Plaintiff's characterization of it—establishes the violation. Nor does Plaintiff stand alone in describing this system: in *Betschart v. Washington County Circuit Court Judges*, No. 23-2270 (9th Cir. May 31, 2024), the Ninth Circuit held that Oregon's failure to provide constitutionally required counsel to pretrial defendants was an extraordinary circumstance requiring federal action notwithstanding *Younger*. The same Washington County institutions appear here again, and the documentary record here likewise shows a system that is not self-correcting.

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3. This action arises from a coordinated pattern of constitutional violations by Washington County officials against Plaintiff AshLe' Penn, beginning with her arrest on September 18, 2024 and continuing through the filing of this Complaint. Plaintiff was seized based on racial profiling and geographic association: because she was a Black woman near a location connected to the true suspect, another black woman, and not because officers had individualized probable cause to arrest Plaintiff.
 4. Plaintiff brings this action pursuant to 42 U.S.C. § 1983 for violations of her rights under the First, Fourth, and Fourteenth Amendments to the United States Constitution, seeking compensatory damages, punitive damages against individual Defendants, declaratory relief, and injunctive relief.
 5. *Younger* abstention does not bar this action. *Younger v. Harris*, 401 U.S. 37, 43–54 (1971). Five independent grounds establish that *Younger* does not apply here; each is set out below. Abstention is a narrow, prudential limit on authority that Congress affirmatively conferred—not a bar to it. In § 1983 itself, Congress expressly authorized the federal courts to enjoin state-court proceedings to vindicate federal rights: § 1983 is an “expressly authorized” exception to the federal anti-injunction statute, 28 U.S.C. § 2283. *Mitchum v. Foster*, 407 U.S. 225, 242–43 (1972). The *Mitchum* Court grounded that authority in its recognition that “federal injunctive relief against a state court proceeding can, in some circumstances, be essential to prevent great, immediate, and irreparable loss of a person’s constitutional rights,” citing *Ex parte Young*, 209 U.S. 123 (1908), and *Dombrowski v. Pfister*, 380 U.S. 479 (1965)—the same authorities on which Plaintiff relies here. *Mitchum*, 407 U.S. at 242. Congress created that federal forum precisely because state tribunals would sometimes fail to enforce federal rights “by reason of prejudice, passion, neglect, intolerance or otherwise.” *Monroe v. Pape*, 365 U.S. 167, 174–80 (1961). And that forum is not conditioned on first pursuing state relief: “[t]he federal remedy is supplementary to the state remedy, and the state remedy need not be sought and refused before the

federal remedy is invoked.” *Id.* at 183. A § 1983 plaintiff need not exhaust state remedies at all. *Patsy v. Bd. of Regents*, 457 U.S. 496 (1982). *Younger* did not repeal this authority; it channels its exercise. Here, *Younger* is inapplicable on five independent grounds.

a. **No legitimate state proceeding.** *Younger* presupposes a state court proceeding is being conducted pursuant to lawful authority and subject matter jurisdiction. Article VII (Amended), Section 5 of the Oregon Constitution is what creates the grand jury. It is not a creature of statute — the grand jury exists because the constitution says it does, and it operates under the conditions the constitution sets. authority of a grand jury is a constitutional question, not just an administrative one. The court in *State v. Gortmaker* later confirmed and extended this: constitutional challenges to grand jury empanelment are cognizable independent of statutory challenges, because the grand jury procedure is constitutionally created and cannot be waived by statute. The grand jury’s existence in Oregon is authorized by court order — specifically, the Presiding Judge Order (“PJO”). ORS §132.120 is the mechanism: a grand jury’s term ends when it ends, and if the presiding judge wants to continue it or empanel a new one, there must be an order entered of record. That is not a bureaucratic formality. It is the mechanism by which the court exercises its constitutional authority over the grand jury. Without a valid PJO, there is no court authorization, and without court authorization, there is no lawfully constituted grand jury. The indictment in Case No. 24CR49043 was returned by a grand jury on January 14, 2025, during a period when no valid Presiding Judge Order (PJO) authorized the grand jury’s existence—PJO 325 expired January 3, 2025; PJO 350 did not take effect until January 31, 2025. The Washington County Trial Court Administrator confirmed this gap in writing. Under *State v. Lawrence*, 12 Or. 297 (1885), a grand jury operating without lawful authority cannot issue a valid true bill. The indictment

is void *ab initio*. The Washington County Circuit Court has not acquired subject matter jurisdiction over this matter, and there is no legitimate state proceeding to which this Court should defer. *Kugler v. Helfant*, 421 U.S. 117, 124–25 (1975).

- b. **Bad faith, harassment, and extraordinary circumstances.** *Younger* abstention is “an extraordinary and narrow exception” to the general rule that a federal court’s obligation to hear and decide a case is “virtually unflagging.” *Betschart v. State of Oregon*, No. 23-2270, slip op. at 17 (9th Cir. May 31, 2024) (quoting *Cook v. Harding*, 879 F.3d 1035, 1038 (9th Cir. 2018)); *Sprint Commc’ns, Inc. v. Jacobs*, 571 U.S. 69, 77 (2013). Even when all four *Younger* factors are met, abstention is nevertheless inappropriate “where there exist other ‘extraordinary circumstances in which the necessary irreparable injury can be shown even in the absence of the usual prerequisites of bad faith and harassment.’” *Betschart*, slip op. at 17 (quoting *Kugler v. Helfant*, 421 U.S. 117, 124 (1975)). The irreparable harm exception is an independent basis for federal intervention regardless of whether the *Younger* factors are met. *Id.* (citing *Page v. King*, 932 F.3d 898, 904 (9th Cir. 2019); *Arevalo v. Hennessy*, 882 F.3d 763, 766 (9th Cir. 2018)). “If meeting the preliminary four-factor test precluded application of the exception, there would be no exception at all.” *Betschart*, slip op. at 17.
- Betschart* is not merely persuasive authority—it was litigated against Washington County Sheriff Patrick Garrett and the Washington County Circuit Court Judges in their official capacities, the same Defendants here. *Id.*, slip op. at 1. The Ninth Circuit held that Washington County’s failure to provide counsel to pretrial defendants constituted extraordinary circumstances warranting federal intervention notwithstanding *Younger*. *Id.* at 17–18. The majority’s rebuke of the dissent is equally instructive: “The dissent’s unbounded approach is an ode to classic judicial overreach.” *Id.* at 19. The Ninth Circuit thus confirmed that the extraordinary-circumstances exception is not a narrow escape hatch to be

read out of existence by a court uncomfortable with federal intervention—it is a structural safeguard that this Court is obligated to apply when the conditions that justify it are present. They are present here.

The bad-faith predicates are not inferential; they are established by a chain of official documents and post-arrest conduct showing that the prosecution was maintained without a reasonable expectation of a valid conviction and with retaliatory or harassing purpose. The specific bad faith predicates are: (a) Rambin’s own December 27, 2024 supplemental report states in writing that the September 17 suspect was not Plaintiff—the arresting officer confessed in a contemporaneous official document that probable cause never existed, and prosecution continued anyway; (b) The January 14, 2025 grand jury operated during the PJO gap, rendering the indictment void and the prosecution incapable of producing a valid conviction on that instrument. These predicates, specifically, establish that the prosecution against Plaintiff is maintained without hope of a valid conviction. *Dombrowski v. Pfister*, 380 U.S. 479, 490 (1965); *Baffert v. California Horse Racing Bd.*, 332 F.3d 613, 621 (9th Cir. 2003) (prosecution brought without reasonable expectation of obtaining a valid conviction and motivated by retaliatory or harassing purpose). (c) Rambin’s December 27 report documents that he directed Target employees to compile all prior incidents involving Plaintiff after conceding his false arrest of Plaintiff, whom he had mistaken for another suspect who had been in the same store the night before committing theft. On the night of Plaintiff’s arrest, Rambin was dispatched to retrieve surveillance evidence following loss prevention officer Sarah Fillis’ call to dispatch reporting a cold theft.” Rambin appears not to have reviewed that footage until nearly 100 days after Plaintiff’s arrest. Upon learning that he had misidentified Plaintiff, Rambin returned to Target. He directed the other grand jury witness—who was not present at the time of Plaintiff’s arrest on September 18, 2024—to compile video

footage of Plaintiff. Rambin stated that he would document the two thefts under different case numbers and use the newly compiled footage to manufacture a new set of facts for prosecution, quietly substituting the initial theft charge with that new evidentiary basis. That is the exact pattern of multiple manufactured prosecutorial actions identified in *Dombrowski*, 380 U.S. at 490. (d) The Mendes denial letter cited "evidence the County has in its possession suggesting the requester is interested in using the requested records to provide legal assistance to the «convicted» perpetrator of the crimes she is the victim of" as the basis for denying Plaintiff's fee waiver request as to public records for which she had a court order for, demonstrating that separate departments of Washington County government were actively using information about Plaintiff's First Amendment activities in making adverse decisions against her, satisfying *Coszalter v. City of Salem*, 320 F.3d 968, 977 (9th Cir. 2003); and (e) Plaintiff sought appellate review by filing an emergency petition for extraordinary relief on July 23, 2025 and a notice of appeal on July 24, 2025. The Court of Appeals dismissed both for lack of appellate jurisdiction on August 15, 2025, confirming that there is no state remedy.

5. As a third and independent ground, *Younger* abstention is inapplicable because the prosecution rests on a detention that was never judicially authorized. *Younger* and its comity rationale presuppose a state court proceeding conducted pursuant to lawful authority over a lawfully detained defendant. *Younger v. Harris*, 401 U.S. 37, 43–44 (1971). Where the defendant's detention was never validated by a neutral magistrate as required by *Gerstein*, the 'adequate state forum' premise of *Younger* is undermined. The state court in 24CR49043 has exercised jurisdiction over Plaintiff's liberty for more than 21 months without any judicial officer ever having made the constitutionally required probable cause determination. The blank probable cause order in the State's own discovery production—every field empty, no signature, no

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- date, no finding—is documentary proof that the proceeding lacks the lawful foundation that *Younger* comity presupposes. A federal court does not owe deference to a state proceeding that has operated outside constitutional authority from its inception.
6. As a fourth and independent ground, *Younger* abstention is inapplicable because the state proceeding has been structurally engineered to prevent any constitutional question from ever reaching appellate review, satisfying both the bad-faith exception and the “capable of repetition, yet evading review” doctrine. *Southern Pacific Terminal Co. v. ICC*, 219 U.S. 498, 515 (1911). The mechanism is two-layered. On April 28, 2025, at what was docketed as an omnibus hearing but converted to a motion to withdraw hearing, Judge Thompson placed Plaintiff on the unrepresented list and informed her that future hearing dates would be cancelled until counsel was appointed. On June 4, 2025, Thompson then added the Oregon Public Defense Commission (“OPDC”) as counsel of record as an administrative placeholder. The court’s automated notice system read that appointed-counsel field to mean that OPDC was counsel of record and routed notices to OPDC instead of to Plaintiff. The face of the record therefore reflected appointed counsel even though Plaintiff had no actual attorney and no notice was being sent to her. The court then continued to hold adverse proceedings, including a show cause hearing and a hearing on the State’s objection to dismissal under *State v. Roberts*, 312 Or. App. 174 (2021), even though Plaintiff had been told that future hearing dates would be cancelled until counsel was appointed. Thompson himself initiated the show cause process through ex parte communications with Community Corrections after the fruits of the unlawful entry were passed along to him, and he relayed that information to the release office without giving Plaintiff notice that those ex parte communications had occurred.
- First, the OPDC placeholder attorney of record creates the appearance of constitutional compliance on the face of the docket while routing all court notices away

from Plaintiff; the state simultaneously denies Plaintiff counsel and requires counsel as a condition of self-representation, and Deputy District Attorney Stabler’s false *Roberts* objection blocks the state’s own remedy. The constitutional violation is therefore self-concealing on the record—a reviewing court examining the docket sees an attorney of record and no apparent deprivation. Second, Plaintiff’s demurrer and motion to quash—which present the constitutional questions directly—have been pending without ruling for more than twenty-one months. Oregon law bars interlocutory appeal of such rulings. ORS 138.035. The Court of Appeals confirmed on August 15, 2025 that no appellate jurisdiction exists. The trial court therefore controls the clock: by declining to rule, it keeps the constitutional questions permanently off appellate radar until conviction, at which point the harm will have been fully consummated. *Younger* was never designed to immunize a proceeding that has been structured to defeat the very review that *Younger* assumes will occur. *Betschart v. State of Oregon*, No. 23-2270, slip op. at 18–19 (9th Cir. May 31, 2024) (extraordinary-circumstances exception operates independently of the four-factor test; *Younger* does not apply where the state proceeding itself forecloses adequate constitutional review).

7. As a fifth and independent ground, *Younger* abstention is inapplicable because the state tribunals adjudicating Plaintiff’s matters are disqualified by bias, and a biased tribunal is not the competent, neutral state forum whose existence *Younger* presupposes. Where the state adjudicator is “incompetent by reason of bias to adjudicate the issues pending before it,” the “predicate for a *Younger v. Harris* dismissal [is] lacking,” and the federal court “need not defer.” *Gibson v. Berryhill*, 411 U.S. 564, 577–579 (1973); see *Kugler v. Helfant*, 421 U.S. 117, 124–25 (1975) (identifying *Gibson* as an example of the extraordinary circumstances that defeat abstention). This ground is distinct from the due-process recusal question of *Caperton v. A.T. Massey Coal Co.*, 556 U.S. 868 (2009): it asks not whether a particular ruling must

be vacated for bias, but the antecedent abstention question whether any state forum entitled to deference exists at all. Here, it does not. Defendant Thompson—a named defendant in this action—has continued to adjudicate Plaintiff’s cases while his own conduct is the subject of them. He initiated the contempt proceeding on Clark’s ex parte communication without notice to Plaintiff; he denied Plaintiff’s dispositive motion without counsel, without a State objection, and without a hearing, after representing on the record that nothing would be decided until counsel was appointed; and he denied Plaintiff’s motion to appear remotely at the very hearing where the accuracy of his own on-the-record finding was at issue, ensuring Plaintiff could not correct it. Thompson has, moreover, prejudged the merits on the record. When Plaintiff stated that she had been misidentified—the factual core of her defense—Thompson answered, on the record on April 28, 2025, “That doesn’t matter.” When Plaintiff insisted that it did, Thompson replied: “I already pulled the cases on this. And I’m telling you the law is not in your favor.” That is the very “prejudice” for which § 1983’s federal forum was designed. *Monroe v. Pape*, 365 U.S. 167, 174–80 (1961). A judge who has independently researched and decided a defendant’s case off the record, before any hearing and before any briefing, and who dismisses the defendant’s central exculpatory fact as immaterial, is not a neutral arbiter but an adversary. That is the biased tribunal to which *Younger* deference does not extend. *Gibson v. Berryhill*, 411 U.S. at 578–579. Presiding Judge Guptil, to whom the *Roberts* objection was referred, revoked a bail that did not exist and issued a warrant for Plaintiff’s failure to appear at a hearing Plaintiff had been prevented from attending, while entertaining the State’s objection to a *Roberts* dismissal—a dismissal established by a decision of the Oregon Supreme Court, not by any statute—an objection frivolous on the face of the record, its premise that Plaintiff “fired” two lawyers contradicted by the record and by Thompson’s own finding that Lasher’s withdrawal was a mandatory conflict of Lasher’s own making. A tribunal

that adjudicates the very conduct alleged against it, and that manufactures the predicates for its own coercive orders, is not the neutral forum whose authority *Younger* protects. This Court owes it no deference. Reassignment or recusal does not cure this bias, and the State cannot invoke the availability of recusal as an adequate state remedy. As in *Gibson*, where the disqualifying interest infected the entire tribunal so that no recusal could produce a neutral decisionmaker, the partiality here is not confined to a single judge whom Plaintiff might move to recuse. Plaintiff’s matter already reached a second judge—Presiding Judge Guptil, the official responsible for reassignment—and that afforded no neutral forum: Guptil revoked a bail that did not exist, issued a failure-to-appear warrant from a hearing Plaintiff had been prevented from attending, and entertained the State’s facially frivolous objection to a *Roberts* dismissal—a remedy grounded in a decision of the Oregon Supreme Court rather than in any statute—resting on the false premise, contradicted by the record, that Plaintiff had “fired” her appointed counsel. Nor did Thompson’s partiality remain in his own courtroom: it was Thompson who denied Plaintiff’s motion to appear telephonically at the *Roberts* hearing in Guptil’s court, ensuring that Plaintiff could not be heard even before a different judge. A bias that follows Plaintiff from courtroom to courtroom, and that reaches into the proceedings of the very judge to whom reassignment would send her, is not remediable by recusal; it is the structural disqualification that *Gibson* holds defeats *Younger* deference. *Gibson v. Berryhill*, 411 U.S. at 577–579.

8. As to Plaintiff’s claims seeking damages, *Younger* abstention does not apply in any event. *Deakins v. Monaghan*, 484 U.S. 193, 201–04 (1988).
9. *Heck v. Humphrey*, 512 U.S. 477 (1994), does not bar Plaintiff’s claims. Plaintiff’s requests for declaratory and prospective injunctive relief are not barred by *Heck*. *Edwards v. Balisok*, 520 U.S. 641, 649 (1997). The unlawful home entry (Count III), First Amendment retaliation (Count IV), equal protection (Count V), familial

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- association (Count XI), and unlawful child removal (Count XI) claims are independent constitutional torts whose success would not invalidate any future conviction. To the extent any claim is deemed subject to *Heck*, Plaintiff requests that such claim be stayed, not dismissed. *Deakins*, 484 U.S. at 201–04.
10. Plaintiff satisfies all four factors for a preliminary injunction under *Winter v. Natural Resources Defense Council, Inc.*, 555 U.S. 7, 20 (2008): (1) likelihood of success on the merits; (2) likelihood of irreparable harm in the absence of preliminary relief; (3) the balance of equities tips in Plaintiff’s favor; and (4) an injunction is in the public interest. *First*, Plaintiff is likely to succeed on the merits. The blank probable cause order in the State’s own discovery production constitutes documentary proof of a *Gerstein* violation. Ramin’s December 27, 2024 supplemental report is a sworn official document in which the arresting officer states in writing that the September 17 suspect was not Plaintiff. The indictment was returned during the PJO gap, a jurisdictional defect confirmed in writing by the Washington County Trial Court Administrator. The May 10, 2025 home entry was warrantless and unsupported by any exigency. These facts are not contested; they appear in the State’s own records. Likelihood of success is not merely plausible—it is established by the government’s own documents. *Second*, Plaintiff will suffer irreparable harm absent preliminary relief. Six independent harms are not compensable by damages: (a) Plaintiff’s minor daughter was removed from her custody on September 6, 2025; developmental time lost to unlawful parent-child separation cannot be restored by a damages award, and access to her child is currently conditioned on submission to arrest under void warrants; (b) the *Gerstein* violation is structurally incapable of post-conviction remedy; (c) two void warrants remain outstanding and create an imminent risk of seizure; (d) the OPDC placeholder creates a self-concealing record routing notices away from Plaintiff; (e) the demurrer and motion to quash have been pending more than twenty-one months and ORS 138.035 bars interlocutory

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- appeal—the Court of Appeals confirmed on August 15, 2025 that no appellate jurisdiction exists; and (f) each day of continued prosecution under a void indictment is itself an irreparable constitutional injury. *Betschart v. State of Oregon*, No. 23-2270, slip op. at 18 (9th Cir. May 31, 2024) (“[d]eprivation of constitutional rights ‘unquestionably constitutes irreparable injury’ ”).
11. *Third*, the balance of equities tips sharply in Plaintiff’s favor. Defendants face no cognizable harm from being required to comply with the Constitution. The State has no legitimate interest in the prosecution it seeks to continue, for three reasons: the indictment is void; the arresting officer repudiated the arrest in writing; and the warrants now used to seize Plaintiff are themselves the product of the constitutional violations alleged in this Complaint. Against that absence of any legitimate state interest, Plaintiff faces ongoing separation from her child, imminent seizure on those warrants, and the permanent loss of her constitutional challenges through the appellate trap described above. *Fourth*, the public interest favors injunctive relief. Federal courts have a “virtually unflagging” obligation to exercise the jurisdiction conferred on them. *Colorado River Water Conservation Dist. v. United States*, 424 U.S. 800, 817 (1976). The public interest is served by ensuring that state criminal proceedings are grounded in lawful authority and that federal constitutional guarantees are not nullified by structural mechanisms that prevent any court from ever reviewing them.
 12. Plaintiff’s claims arising from Defendants’ extension of the warrants into juvenile dependency proceeding 25JU04261—including use of the warrants to deny records access, obstruct filings, restrict parent-child contact, and defer adjudication pending Plaintiff’s apprehension—are pled in Counts IX, X, and XI. Plaintiff does not ask this Court to adjudicate the custody or dependency merits; she seeks redress for the constitutional violations of the individual actors described herein.

PARTIES

13. Plaintiff **ASHLE' PENN** is domiciled in Washington County, Oregon. She presents herself in this action. At all times relevant to this Complaint, Plaintiff was a private individual with no criminal conviction with regard to the matters at issue.
14. Defendant **WASHINGTON COUNTY, OREGON** is a municipal corporation organized under Oregon law, operating the Washington County Sheriff's Office (WCSO), Washington County Community Corrections (WCCC), and the Washington County District Attorney's Office. Washington County is a "person" within the meaning of 42 U.S.C. § 1983. *Monell v. Dep't of Soc. Servs.*, 436 U.S. 658, 690 (1978).
15. Defendant **DEPUTY DAVID RAMBIN** ("Rambin") is or was at all relevant times a deputy sheriff employed by the Washington County Sheriff's Office, acting under color of state law. Rambin is sued in his individual capacity and in his official capacity solely for purposes of prospective injunctive and declaratory relief pursuant to *Ex parte Young*, 209 U.S. 123 (1908).
16. Defendant **ALICIA GERTEN** ("Gerten") is or was at all relevant times a deputy district attorney employed by the Washington County District Attorney's Office, acting under color of state law. Gerten is sued in her individual capacity for conduct outside the scope of prosecutorial immunity: specifically, the decision to continue prosecution after the arresting officer's written acknowledgment of misidentification. *Imbler v. Pachtman*, 424 U.S. 409, 430–31 (1976).
17. Defendant **JUDGE BRANDON THOMPSON** ("Thompson") is or was at all relevant times a judge of the Washington County Circuit Court, acting under color of state law. Thompson is sued in his individual capacity for administrative acts only. The specific conduct alleged—(a) sending an ex parte communication to the Washington County release office directing it to seek a violation report against Plaintiff, outside any pending adversarial proceeding; and (b) denying Plaintiff's request for

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- remote appearance at a hearing at which a material misrepresentation of Thompson’s own prior finding was to be adjudicated—constitutes administrative action to which absolute judicial immunity does not attach. *Forrester v. White*, 484 U.S. 219, 228 (1988). Thompson is also sued in his official capacity solely for purposes of prospective injunctive and declaratory relief.
18. Defendant **MOLLY BINEHAM** (“Bineham”) is or was at all relevant times a supervisor employed by Washington County Community Corrections, acting under color of state law. Bineham entered an “administrative warrant” into the Law Enforcement Data System (LEDS) that served as the purported authority for the warrantless entry into Plaintiff’s home on May 10, 2025, and subsequently used information gathered during that entry to support revocation of Plaintiff’s bail. Bineham is sued in her individual capacity and in her official capacity solely for purposes of prospective injunctive and declaratory relief.
 19. Defendant **SHEILA CLARK** (“Clark”) is or was at all relevant times a supervisor employed by Washington County Community Corrections, acting under color of state law. Clark is sued in her individual capacity and in her official capacity solely for purposes of prospective injunctive and declaratory relief pursuant to *Ex parte Young*, 209 U.S. 123 (1908).
 20. Defendant **AARON MENDES** (“Mendes”) is or was at all relevant times the Human Resources Manager for Washington County, acting under color of state law. On September 19, 2025, Mendes denied Plaintiff’s application for a court filing fee waiver, citing Plaintiff’s associations. That denial constitutes retaliation for Plaintiff’s exercise of First Amendment rights and a violation of ORS 181A.250. Mendes is sued in his individual capacity.
 21. Defendant **JUDGE MICHELLE C. RINI** (“Rini”) is or was at all relevant times a judge of the Washington County Circuit Court presiding over juvenile dependency proceeding 25JU04261. Rini is sued in her individual capacity for administrative

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- acts only. The specific conduct alleged—(a) denying Plaintiff’s records request and conditioning inspection on in-person appearance through the court’s administrative records-approval procedure, outside any pending motion, while on information and belief intending Plaintiff’s arrest upon appearance; and (b) restricting the clerk’s acceptance of Plaintiff’s filings—constitutes administrative action to which absolute judicial immunity does not attach. *Forrester v. White*, 484 U.S. 219, 228 (1988).
22. Defendant **DAVID MILNE** (“Milne”) is or was at all relevant times a caseworker employed by the Oregon Department of Human Services (ODHS) assigned to dependency proceeding 25JU04261, acting under color of state law. Milne is sued in his individual capacity.
23. Defendant **SONYA FAULKNER** (“Faulkner”) is or was at all relevant times the ODHS District 16 Interim Manager for Washington County, acting under color of state law. Faulkner is sued in her individual capacity for her own culpable action and inaction as a supervisor: with actual, documented notice of her subordinates’ constitutional violations, she failed to correct them, permitted them to continue, and conditioned Plaintiff’s contact with her daughter on submission to demands for which no lawful predicate was identified. *Starr v. Baca*, 652 F.3d 1202, 1207 (9th Cir. 2011).
24. Defendants **HEATHER KIDDO** (“Kiddo”) and **ANGELA BENNETT** (“Bennett”) are or were at all relevant times ODHS child protective services caseworkers, acting under color of state law. On September 6, 2025, Kiddo and Bennett took Plaintiff’s minor daughter into protective custody without a court order. Kiddo and Bennett are sued in their individual capacities.
25. Defendant **KIMBERLY BECK** (“Beck”) is or was at all relevant times a clerk of the Washington County Circuit Court, acting under color of state law. Beck is sued in her individual capacity for refusal to accept Plaintiff’s filings.
26. Defendants **DOES 1–4** are the Washington County Sheriff’s Deputies who entered

Plaintiff's home on May 10, 2025, identities currently unknown to Plaintiff. Plaintiff will amend this Complaint to substitute their true names when ascertained through discovery. Does 1–4 are sued in their individual capacities.

27. Defendants **DOES 5–10** are persons whose identities are currently unknown to Plaintiff who participated in the constitutional violations described herein. Plaintiff will amend to substitute their true names when ascertained.

JURISDICTION AND VENUE

28. This Court has subject matter jurisdiction under 28 U.S.C. § 1331 (federal question) and 28 U.S.C. § 1343(a)(3) (civil rights). The claims arise under 42 U.S.C. § 1983 and the First, Fourth, and Fourteenth Amendments to the United States Constitution.
29. Venue is proper in the Portland Division under 28 U.S.C. § 1391(b) because all events giving rise to Plaintiff's claims occurred in Washington County, Oregon, within this district and division.
30. The applicable statute of limitations is Oregon's two-year personal injury statute, ORS 12.110(1), as applied to § 1983 claims. *Wilson v. Garcia*, 471 U.S. 261 (1985). The earliest accruing claim—false arrest under Count I—accrued no earlier than September 18, 2024. *Wallace v. Kato*, 549 U.S. 384, 388 (2007). Each remaining claim accrued later: the unlawful home entry claim (Count III) accrued May 10, 2025; the continued-seizure claim (Count II) alleges an ongoing violation continuing to the present; the First Amendment retaliation and Equal Protection claims (Counts IV–V) accrued no earlier than September 19, 2025 (the Mendes Denial); the access-to-courts and familial association claims (Counts VIII–X) accrued in 2025 and 2026; and the unlawful removal claim (Count XI) accrued no earlier than September 6, 2025. Every claim in this Complaint is timely filed within two years of accrual.

STATEMENT OF FACTS

The Pattern—Four County Departments, One Protected Error: Overview of the Four Causal Chains

31. Four county institutions acted in succession, each protecting the last. The Sheriff's Office made and then defended a false arrest; the District Attorney indicted on it through a grand jury that lacked lawful authority and declined to correct testimony it knew to be false; the Circuit Court initiated punitive proceedings on an ex parte communication, entered a placeholder attorney of record that routed Plaintiff's notices away from her, and ruled against her without counsel and without a hearing; and Washington County Community Corrections and Human Resources delayed, priced, and denied the public records that would expose the original error, citing Plaintiff's associations in writing. The four causal chains set out below are the mechanics of that containment. Each chain is independently actionable; together they establish the custom.
32. **Chain A** (Misidentification Arrest): On September 18, 2024, Deputy Rambin arrested Plaintiff without probable cause, misidentifying her as another suspect. The investigation purporting to supply probable cause occurred after the arrest. Rambin's supplemental report admitted the misidentification. The grand jury that indicted Plaintiff operated without lawful authority. The grand jury proceeding was tainted by testimony from Deputy Baker that contradicted the sworn affidavit and was never disclosed to the defense.
33. **Chain B** (Administrative Order / Home Entry): Washington County Community Corrections issued an administrative order of arrest under ORS 144.350 based on a recital that supervising officer Rolfe was unavailable. That recital was entered into LEDS as a felony warrant." The mislabeled LEDS entry was used as the purported authority for the warrantless entry into Plaintiff's home on May 10, 2025.

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34. **Chain C** (Records Suppression): Beginning May 15, 2025, Plaintiff made a series of public records requests seeking the documents necessary to verify and challenge the predicates for her prosecution and the home entry. Each request was denied, delayed, or priced out of reach. The September 19, 2025 denial by Defendant Mendes expressly cited Plaintiff's associations as the basis for the denial—a written admission that law enforcement intelligence was used to make an adverse administrative determination.
35. **Chain D** (Ex Parte / Contempt): On May 10, 2025, Defendant Clark sent an ex parte email to Judge Thompson directing him to initiate a show cause proceeding against Plaintiff. Thompson did so without notice to Plaintiff. On June 10, 2025, a communication from Washington County attorney Stiefer documented the Clark-Thompson chain, establishing that the contempt proceeding in Case No. 25CN05790 was initiated on the basis of that ex parte communication. The State has not produced the Stiefer communication in discovery; Plaintiff pleads its existence on the basis of information and belief and asserts that its withholding constitutes a Brady violation.

Background

36. Plaintiff AshLe' Penn is domiciled in Washington County, Oregon. At all times relevant to this Complaint, Plaintiff had not been convicted of any crime related to the matters at issue. She is the subject of criminal cases 24CR27775 and 24CR49043, contempt proceeding 25CN05790, and is the mother of a child in state care pursuant to dependency proceeding 25JU04261—all arising from the conduct of Defendants described herein.
37. At all relevant times, each Defendant acted under color of state law within the meaning of 42 U.S.C. § 1983.

Chain A—One Deputy’s Error: The Arrest Without Probable Cause and the Tainted Grand Jury

The facts in this section establish: (1) that Plaintiff’s arrest on September 18, 2024 lacked individualized probable cause at the moment of seizure; (2) that the investigation purporting to supply probable cause was conducted entirely after Plaintiff was already in custody; (3) that Rambin’s own supplemental report acknowledged the misidentification; (4) that the grand jury that indicted Plaintiff operated without lawful authority; and (5) that the grand jury proceeding was tainted by testimony from Deputy Baker that contradicted the sworn affidavit and was never disclosed to the defense. These facts support Count I (false arrest), Count V (equal protection), Count VII (due process), Count IX (malicious prosecution), Count X (void indictment), and Count XII (Brady/concealment).

38. On September 18, 2024, at approximately 6:54 p.m., Washington County Sheriff’s Office Dispatch received a call from Target loss prevention employee Sarah Fillis reporting a completed theft. The incident was classified in the Computer-Aided Dispatch (CAD) system as “Theft Cold”—a theft that had already concluded and was not in progress. Deputy Rambin was assigned as the primary responding unit. Rambin arrived, collected surveillance footage from Target’s loss prevention system, and closed the incident at approximately 7:15 p.m. Rambin therefore had surveillance footage in his possession more than two hours before Plaintiff’s arrest.
39. At approximately 9:14 p.m.—more than two hours after the original incident was closed—a second CAD entry was opened, classified as “Theft in Progress.” Deputy Rambin was listed as the primary unit. The reclassification from “Theft Cold” to “Theft in Progress” is not supported by any contemporaneous report and is inconsistent with the original incident record.

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40. Rambin located Plaintiff and a second individual, Shaniece Washington, in the vicinity of the Target store. Rambin handcuffed Plaintiff before any investigation of her identity had occurred. Body-worn camera footage shows Rambin already placing Plaintiff in handcuffs as Deputy Orozco was exiting his vehicle—before Orozco had spoken with any witness or conducted any identification inquiry. The two women shared no identifying characteristics other than race. Plaintiff was seized because she was a Black woman in proximity to another Black woman who was the actual suspect.
41. Text messages exchanged among Washington County deputies on the evening of September 18, 2024, beginning at approximately 9:06 p.m., reflect coordination among responding officers prior to and during Plaintiff’s detention. Those messages are consistent with a decision to detain Plaintiff before any individualized probable cause determination had been made.
42. The CAD narrative log for Incident 2 (GO 50-2024-13459) establishes the sequence of events on September 18, 2024 with minute-by-minute precision. At 21:44, Rambin (Unit 5327) entered the notation ‘ONE DETAINED’ into the CAD system. At 21:44—the same minute, and after that notation was entered—Deputy Orozco (Unit 5224) ran a driver’s license query on Plaintiff: PENN, ASHLE ANTOINETTE, License No. 1956857. Orozco’s identification inquiry thus occurred after Plaintiff was already in custody. No CAD entry, no dispatch log, and no report documents any identification inquiry, witness interview, or surveillance review conducted by Orozco prior to Plaintiff’s detention. Orozco’s post-custody DL query is not a predicate for probable cause; it is a post-hoc ratification of a seizure already completed.
43. Rambin’s supplemental report, filed December 27, 2024, acknowledges that Plaintiff was not the individual depicted in the surveillance footage he had collected more than two hours before the arrest. The report directed Target employees to compile all prior incidents involving Plaintiff—a documented, officer-initiated effort to con-

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- struct a post-hoc evidentiary basis for a prosecution that had already been initiated on a constitutionally defective arrest. Ramin's report constitutes a post-hoc evidence directive: it was filed only after Plaintiff challenged the basis for her arrest, and it was the product of an investigation initiated because the original probable cause basis had been acknowledged as nonexistent.
44. Ramin's probable cause affidavit, executed at booking on September 18, 2024, asserts that probable cause existed before Plaintiff exited the store. That assertion is directly contradicted by the CAD record. The CAD narrative log shows the second incident was opened at 21:14 hours. No CAD entry between 21:14 and 21:43 reflects any identification of Plaintiff, any witness contact by Ramin, or any review of surveillance footage at the scene. At 21:44, Ramin entered 'ONE DETAINED'—meaning Plaintiff was already in custody. Ramin's report constitutes a post-hoc evidence directive: it was filed only after Plaintiff challenged the basis for her arrest.
45. The reports filed by Ramin, Orozco, and Stone contain a circular probable cause attribution establishing that no officer possessed independent probable cause at the moment of seizure. Ramin's Follow-Up Report No. 1 does not identify any act of theft he personally observed, any surveillance footage he reviewed before the arrest, or any individualized basis for concluding the woman he detained was the woman in the September 17 footage. Orozco's Follow-Up Report No. 4 states only: '[T]hey arrested a female identified as Ashle Penn who Deputy Ramin had probable cause to arrest.' Orozco does not claim independent probable cause. Stone's Follow-Up Report No. 2 states: 'Deputy Ramin advised me that he had probable cause to arrest Ashle at that point. For more information refer to Deputy Ramin's primary report.' Stone also does not claim independent probable cause. The result is a closed loop: Orozco defers to Ramin; Stone defers to Ramin; and Ramin's own reports do not articulate a specific, individualized basis for concluding that the woman he handcuffed was the woman in the September 17 surveillance footage. The attribution

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- circle closes on nothing. All of this occurred before Orozco had run her identification or spoken with Fillis. The affidavit's claim that probable cause existed before Plaintiff left the store is a post-hoc narrative constructed after the seizure was complete. Probable cause must exist at the moment of arrest; it cannot be supplied by investigation conducted after the arrest. *Devenpeck v. Alford*, 543 U.S. 146, 152 (2004).
46. Stone's own report confirms he arrived after the probable cause determination had already been made by Ramin. Stone responded at approximately 2115 hours, met Ramin 'who was waiting near the main entrance/exit,' and was told by Ramin that Ramin 'had probable cause to arrest Ashle at that point.' Stone did not witness any conduct by Plaintiff inside the store. Stone did not speak with Sarah Fillis before the arrest. Stone did not review surveillance footage before the arrest. Stone's report directs the reader to 'Deputy Ramin's primary report' for the basis of probable cause—a document that itself does not articulate the specific individualized facts required to establish that the woman detained was the woman in the prior-day footage.
 47. The sworn probable cause affidavit submitted in connection with Plaintiff's prosecution attributes the theft to tag removal. That attribution is contradicted by three contemporaneous reports. Defendant Gerten, as the prosecuting deputy district attorney, directed Ramin to conduct a post-arrest investigation to determine whether Plaintiff had violated her release agreement—a function that is investigatory, not prosecutorial, and to which absolute immunity does not attach. *Buckley v. Fitzsimmons*, 509 U.S. 259, 273 (1993).
 48. Two versions of Ramin's probable cause affidavit exist in the record. The version produced by the State in discovery contains blank signature lines and states the value of returned items as \$285.55. The version in Plaintiff's possession—bearing Ramin's signature and the signature of a swearing officer identified by DPSST No. E7440—states the value of the same returned items as \$295.55. These are not

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- identical copies. One was modified after execution. The swearing officer identified by DPSST No. E7440 is a law enforcement officer, not a judicial officer; DPSST numbers identify Oregon law enforcement credentials, not bar numbers or judicial appointments. An affidavit sworn before a fellow law enforcement officer does not satisfy the neutrality requirement of the Fourth Amendment. *Coolidge v. New Hampshire*, 403 U.S. 443, 449 (1971). The discrepancy between the two versions—a sworn instrument altered after execution—is a *Franks v. Delaware*, 438 U.S. 154 (1978), issue entitling Plaintiff to a hearing on the truthfulness of the affidavit.
49. Case No. 24CR27775 is a separate prosecution against Plaintiff for Theft I arising from an alleged theft of a cellular telephone. The alleged victim received her telephone back and sustained no uncompensated injury. The telephone’s market value, as determined by the IMEI number in the police report, was below the \$1,000 threshold required for Theft I under ORS 164.055—rendering the felony charge facially unsupported. A civil compromise was available under ORS 135.703–135.709 because the offense involved the taking of another’s property and the victim had been made whole. Under *State v. Aguilera* (2023), a civil compromise is available irrespective of a defendant’s criminal history or probable sentencing outcome; the relevant consideration is the characteristic of the crime, not the offender.
50. At Plaintiff’s arraignment in 24CR27775, ECR attorney Laura Berge Soren appeared on Plaintiff’s behalf. Plaintiff informed the court that the charging document had not been read into the record and that the charging document was facially deficient for failure to allege a criminal mental state. The arraignment was set over. Plaintiff did not refuse to plead; she asserted that the arraignment was incomplete and that she lacked the information necessary to make a knowing decision. The court’s authority under ORS 135.060 to enter a not guilty plea is triggered by a defendant’s refusal to plead, not by a defendant’s assertion that the arraignment has not been completed.

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51. On October 10, 2024, at a hearing in Case No. 24CR27775, Plaintiff appeared in open court and invoked her right to a preliminary hearing to challenge the basis for probable cause. The state circumvented that invocation. Plaintiff was denied the preliminary hearing to which she was entitled under Oregon law, foreclosing the only pre-indictment adversarial proceeding at which the sufficiency of probable cause could have been tested.
 52. At the continued arraignment hearing, ECR attorney Rene Carlson appeared. Plaintiff specifically instructed Carlson that no plea should be entered because the arraignment remained incomplete. Carlson agreed: 'We're not pleading right now. There should not have been a plea entered because the arraignment has not been completed.' Carlson then allowed the court to enter a not guilty plea on Plaintiff's behalf and rejected the ECR offer—neither action authorized by Plaintiff. These facts are documented in a recorded call with firm supervisor Maria Velázquez, who defined ECR counsel's scope as limited to confirming the defendant's name, date of birth, receipt of the charging document, and relaying the plea offer. The supervisor's own definition confirms that Carlson's rejection of the plea offer was unauthorized. The supervisor was informed of these facts and took no remedial action, constituting firm-level ratification. As a direct result, Plaintiff was removed from the ECR program and lost the opportunity to challenge the charging instrument she had specifically preserved. *Lafler v. Cooper*, 566 U.S. 156 (2012); *Strickland v. Washington*, 466 U.S. 668 (1984).
 53. In a recorded call with ECR attorney Joseph Beck, Plaintiff raised the civil compromise remedy under ORS 135.703–135.709. Beck acknowledged the point and committed to contacting the victim. The civil compromise was never pursued. On September 21, 2024, defense counsel Sunny Sidman informed Plaintiff by email that the civil compromise would no longer be pursued because a new case—24CR49043—had been filed. No legal authority supports the proposition that the

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- filing of a separate case bars a civil compromise in a prior case. Sidman’s email simultaneously transmitted a bundled plea offer requiring guilty pleas to two counts of Theft II, on a Saturday, with Sidman out of the office the following week. Sidman did not inform Plaintiff that a conditional guilty plea under ORS 135.335(3) was available to preserve constitutional challenges. The abandonment of the civil compromise remedy and the failure to advise regarding conditional pleas constitute deficient performance under *Strickland*.
54. The Fourth Amendment requires a judicial determination of probable cause as a prerequisite to extended pretrial detention following a warrantless arrest. *Gerstein v. Pugh*, 420 U.S. 103, 114 (1975). The Supreme Court has established 48 hours as the presumptive outer limit. *County of Riverside v. McLaughlin*, 500 U.S. 44, 56 (1991). Oregon independently codifies this requirement in ORS 133.145, which requires the finding within 36 hours. Plaintiff was arrested at approximately 9:42 p.m. on September 18, 2024. The 36-hour ORS 133.145 window closed at approximately 9:42 a.m. on September 20, 2024. The 48-hour *McLaughlin* window closed at approximately 9:42 p.m. on September 20, 2024. No judicial probable cause determination was made within either window—or at any time thereafter.
55. On January 14, 2025, a Washington County grand jury returned an indictment against Plaintiff in Case No. 24CR49043. That grand jury was empaneled and operated during a period when no valid Presiding Judge Order authorized its existence. PJO 325 expired on January 3, 2025. PJO 350 did not take effect until January 31, 2025. The grand jury that indicted Plaintiff operated in the gap between those orders, without lawful authority. The Washington County Trial Court Administrator, Richard Moellmer, confirmed the existence of this gap in writing. Under *State v. Lawrence*, 12 Or. 297 (1885), a grand jury operating without lawful authority cannot issue a valid true bill. The indictment in Case No. 24CR49043 is void *ab initio*.
56. The swearing officer on Ramin’s probable cause affidavit is identified by DPSST

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- No. E7440. DPSST numbers identify Oregon law enforcement credentials. A judicial officer authorized to administer oaths does not hold a DPSST number; such officers hold bar numbers or court appointments. The person who administered the oath on Ramin's affidavit was a law enforcement officer, not a neutral and detached magistrate. *Gerstein* requires the probable cause determination to be made by a neutral and detached magistrate. *Coolidge v. New Hampshire*, 403 U.S. 443, 449 (1971). An affidavit sworn before a fellow law enforcement officer does not satisfy that requirement.
57. The absence of a *Gerstein* determination is not a curable procedural defect. *Gerstein* itself held that a grand jury indictment does not cure the failure to make a prompt post-arrest probable cause determination. 420 U.S. at 119 n.19. The January 14, 2025 indictment does not retroactively authorize Plaintiff's detention from September 18, 2024 forward. Every day of pretrial supervision, every release condition imposed, and every subsequent proceeding rests on a detention that was never judicially authorized by a neutral magistrate. The blank order in the State's own discovery production is the single most probative document in this case: it is not Plaintiff's word against the State's—it is the State's own file against the State's position that everything was done properly.
58. The grand jury proceeding was additionally tainted by the presentation of testimony inconsistent with the sworn probable cause affidavit. Deputy Baker, who does not appear in any September 18, 2024 report or CAD record and who entered the case no earlier than December 27, 2024, testified before the grand jury that the officers were present at the scene for an unrelated incident." That testimony is irreconcilable with the sworn affidavit and with every contemporaneous police report. Defendant Gerten knew or should have known that Baker's testimony contradicted the affidavit and failed to correct it.
59. Baker's grand jury testimony has not been produced to Plaintiff. The grand jury

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- transcript has not been produced to Plaintiff. The State's failure to disclose testimony that it knew contradicted the sworn affidavit supporting Plaintiff's prosecution constitutes a Brady violation. *Brady v. Maryland*, 373 U.S. 83, 87 (1963). The materiality of Baker's testimony is self-evident: it is the only testimony before the grand jury that purported to explain the officers' presence at the scene, and it directly contradicts the affidavit on which the prosecution rests.
60. Plaintiff filed a suppression motion in Case No. 24CR49043. On June 4, 2025, Judge Thompson denied that motion without State opposition, without a hearing, and without any opportunity for Plaintiff to be heard, contrary to his own on-the-record representations regarding the scheduling and conduct of the suppression hearing. Plaintiff filed a notice of appeal on July 24, 2025 (Court of Appeals No. A188234). The Court of Appeals dismissed the appeal on August 15, 2025, confirming that no interlocutory appellate remedy was available.
 61. Prior to the denial of the suppression motion, the Oregon Public Defense Commission (OPDC) had been entered into the Washington County Circuit Court's case management system as a structural placeholder in Case No. 24CR49043. OPDC is not, and was not, Plaintiff's counsel. As a result of this entry, the court's automated notice system routed hearing notices and case correspondence to OPDC rather than to Plaintiff. Plaintiff received no notice of the hearing dates from which the failure-to-appear warrants subsequently issued.
 62. A warrant for failure to appear issued from a hearing Plaintiff was affirmatively prevented from attending by reason of the notice blackout described in paragraph . Plaintiff filed a motion to quash that warrant on July 1, 2025. That motion has remained unruled for more than a year. The court communicated through a clerk that the warrant "will stay in place." The court's own register reflects, in a July 1, 2025 mail-return entry, that the notice for the hearing underlying the warrant had been sent to a previous address.

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63. In the course of proceedings in Case No. 24CR49043, the court stated on the record that Plaintiff “doesn’t get to decide what gets filed” in her own case because she lacks a law license. The court refused to acknowledge or rule upon Plaintiff’s demurrer and other pro se filings on that basis, while simultaneously failing to provide the legal representation that would have been required to make that position constitutionally permissible.
64. On April 28, 2025, Plaintiff filed a demurrer in Case No. 24CR49043 challenging the Washington County Circuit Court’s subject matter jurisdiction on the ground that the indictment was returned by a grand jury operating without lawful authority. The court has not ruled on that demurrer. ORS 1.050 requires Oregon courts to dispose of matters submitted to them without delay. The court’s refusal to rule on a jurisdictional demurrer—while continuing to exercise jurisdiction over Plaintiff’s liberty and while stating on the record that Plaintiff “doesn’t get to decide what gets filed”—violates ORS 1.050 and deprives Plaintiff of due process.

Chain B—Community Corrections Manufactures Authority: The ORS 144.350 Administrative Order, the LEDS Mislabeling, and the Warrantless Home Entry

The facts in this section establish: (1) that the purported authority for the May 10, 2025 entry into Plaintiff’s home was not a judicial warrant but an administrative order of arrest issued under ORS 144.350; (2) that the administrative order was predicated on a recital that supervising officer Rolfe was unavailable, a recital whose factual basis is verifiable only through records that the County has refused to produce; (3) that the administrative order was entered into LEDS as a “felony warrant,” a mislabeling that caused the executing deputies to believe they had judicial authority they did not have; and (4) that the entry, the observations made during it, and the bail revocation that followed are the direct fruit of a Fourth Amendment violation. These facts sup-

port Count III (unlawful home entry), Count II (continued unlawful seizure), and Count VI (Monell).

65. Between approximately November 4 and November 25, 2024, Washington County Community Corrections made a single attempt to contact supervising officer Rolfe in connection with a warrant request relating to co-arrestee Shaniece Washington. No second contact attempt was made. Washington County Community Corrections staffing and layoff records, which Plaintiff has sought through public records requests (see paragraph), are the only source through which the recital underlying the administrative order of arrest can be verified.
66. On information and belief, Rolfe was laid off from Washington County Community Corrections prior to the issuance of the administrative order of arrest. If Rolfe was no longer employed by Washington County Community Corrections at the time the order was issued, the recital that Rolfe was “unavailable” was false or misleading, and the administrative predicate for the order fails. Plaintiff pleads this on information and belief pending production of the Community Corrections staffing and layoff records sought in public records request C008691.
67. Washington County Community Corrections issued an administrative order of arrest under ORS 144.350. ORS 144.350 authorizes an administrative—not judicial—order of arrest for a person on supervision who has violated the conditions of supervision. An ORS 144.350 order is not a judicial warrant. It does not authorize entry into a private home. *Payton v. New York*, 445 U.S. 573, 589–90 (1980); *Steagald v. United States*, 451 U.S. 204, 211–12 (1981).
68. Defendant Bineham entered the ORS 144.350 administrative order into the Law Enforcement Data System (LEDS) with a designation that caused it to appear as a “felony warrant” in LEDS queries. That mislabeling was not inadvertent: Bineham, as a supervisor in Washington County Community Corrections, knew or should have known the legal distinction between an administrative order under ORS 144.350

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- and a judicial warrant. The mislabeled LEDS entry caused the executing deputies to proceed as though they had judicial authority to enter Plaintiff's home. They did not.
69. On May 10, 2025, Washington County Sheriff's Deputies (Does 1–4), acting at Bineham's direction and in reliance on the mislabeled LEDS entry, entered Plaintiff's home at 17548 NW Springville Rd., Portland, Oregon. The entry was warrantless. No valid judicial warrant authorized the entry. No exigent circumstances existed. Plaintiff did not consent. The entry violated the Fourth Amendment. *Payton v. New York*, 445 U.S. 573, 589–90 (1980).
 70. During the May 10, 2025 entry, officers observed and documented information about Plaintiff's residence, activities, and circumstances. Those observations were made during an unlawful entry and are the fruit of a Fourth Amendment violation. *Wong Sun v. United States*, 371 U.S. 471, 484–85 (1963).
 71. Defendant Bineham subsequently used the observations and reports generated during the May 10, 2025 entry as evidence to support revocation of Plaintiff's bail. The current arrest warrant for Plaintiff issued directly from that bail revocation. The warrant is the direct and foreseeable product of the Fourth Amendment violation. *Manuel v. City of Joliet*, 580 U.S. 357, 364–65 (2017).
 72. The arrest warrant affidavit issued on or about December 29, 2025, in connection with the bail revocation contains at least four defects, including alterations to contact information. Those defects are consistent with post-hoc modification of the affidavit to conceal the contempt origin of the enforcement action.

Chain C—The County Closes the Files: The Records Suppression Campaign

The facts in this section establish that Plaintiff made four separate public records requests seeking the documents necessary to verify and challenge the predicates for her prosecution and the warrantless home entry; that each re-

quest was denied, delayed, or priced out of reach; and that the September 19, 2025 denial by Defendant Mendes expressly cited Plaintiff's associations as the basis for the denial, constituting a written admission that law enforcement intelligence was used to make an adverse administrative determination in violation of ORS 181A.250. These facts support Count IV (First Amendment retaliation), Count V (equal protection), Count VIII (access to courts), and Count XIII (Monell Leg 2 / coordinated suppression custom).

73. On May 15, 2025, Plaintiff submitted public records request C008202 to Washington County, seeking all communications between Rolfe and Washington (co-arrestee Shaniece Washington) relating to the November 2024 warrant request and the ORS 144.350 administrative order. Plaintiff identified herself as a victim of the underlying theft investigation for purposes of the fee waiver provisions of ORS 192.324. Washington County imposed fees and delays on the request and did not produce the requested records. The imposition of fees on a victim-status requestor, without explanation, constitutes a violation of ORS 192.324 and impeded Plaintiff's ability to verify the factual predicate for the administrative order used to authorize the warrantless entry into her home.
74. On August 23, 2025, Plaintiff submitted public records request C008691 to Washington County, seeking Washington County Community Corrections staffing and layoff records sufficient to verify whether Rolfe was employed by Community Corrections at the time the ORS 144.350 administrative order was issued. Washington County assessed a fee of \$7,846.60 for production of those records. That fee is not rationally related to the actual cost of production and functions as a de facto denial. The records sought in C008691 are the only source through which the Rolfe "unavailable" recital in the administrative order can be verified or refuted. The imposition of a \$7,846.60 fee on an indigent pro se litigant seeking records necessary to challenge the legality of a warrantless home entry is not a neutral administrative

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- act; it is a mechanism of suppression.
75. On September 19, 2025, Plaintiff applied for a court filing fee waiver through Washington County. Defendant Aaron Mendes, Washington County Human Resources Manager, denied that application. The denial cited, as a basis, Washington County’s “evidence” of Plaintiff’s associations and Plaintiff’s intended use of the records. That denial is a written admission that Washington County used law enforcement intelligence—specifically, information about Plaintiff’s associations gathered through the county’s intelligence apparatus—to make an adverse administrative determination. The use of law enforcement intelligence records to make an adverse administrative determination violates ORS 181A.250. The use of Plaintiff’s associations as a basis for the denial constitutes retaliation for Plaintiff’s exercise of her First Amendment right of association. *Nieves v. Bartlett*, 587 U.S. 391, 398 (2019).
76. ORS 181A.250 prohibits Oregon law enforcement agencies from collecting or maintaining intelligence information about a person’s political, religious, or social views, associations, or activities unless that information directly relates to criminal conduct and there is reasonable suspicion that the person is involved in criminal activity. ORS 181A.250 further prohibits the dissemination of such information to other agencies or for non-law-enforcement purposes. Mendes’s denial letter establishes that Washington County maintained intelligence information about Plaintiff’s associations and disseminated that information to the Human Resources department for use in an administrative fee determination. That inter-agency sharing violates ORS 181A.250 and constitutes the “coordinated suppression custom” that forms Monell Leg 2 of Count XIII.
77. On or about March 27, 2026, Plaintiff submitted a public records request to Washington County through the office of County Counsel Johnston, seeking records relating to the dependency proceeding 25JU04261 and the use of the outstanding war-

rants in that proceeding. Johnston provided no response. Under ORS 192.320, a public body's failure to respond to a public records request within the statutory period constitutes a constructive denial. Johnston's constructive denial is the fourth in a series of records denials that, taken together, establish a pattern and practice of using the public records process to suppress the evidence necessary to challenge the constitutional violations described in this Complaint.

78. In addition to the Mendes denial, Plaintiff's applications for court filing fee waivers in the state court proceedings have been left unaddressed despite an existing indigency finding. The systematic failure to process fee waiver applications, combined with the Mendes denial's express citation of Plaintiff's associations, establishes that the fee waiver process has been used as an instrument of access denial.

Chain D—The Court Closes Ranks: The Ex Parte Communication, the Show Cause Proceeding, and the Contempt

The facts in this section establish: (1) that on May 10, 2025, Defendant Clark sent an ex parte email to Judge Thompson directing him to initiate a show cause proceeding against Plaintiff; (2) that Thompson did so without notice to Plaintiff and outside any pending adversarial proceeding; (3) that the contempt proceeding in Case No. 25CN05790 was initiated on the fruits of the May 10, 2025 warrantless home entry, making the ORS 135.290 predicate for the contempt legally defective; (4) that a June 10, 2025 communication from Washington County attorney Stiefer documented the Clark-Thompson chain and has not been produced to Plaintiff; and (5) that the December 29, 2025 arrest warrant affidavit conceals the contempt origin of the enforcement action. These facts support Count III (unlawful home entry), Count II (continued unlawful seizure), Count VII (due process), Count XII (Brady/concealment), and Count XIII (Monell Leg 2).

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79. On or about May 10, 2025, Defendant Sheila Clark, a supervisor at Washington County Community Corrections, sent an ex parte email communication to Judge Thompson. That communication directed Thompson to initiate a show cause proceeding against Plaintiff based on the observations made during the warrantless home entry of May 10, 2025. No motion was pending before the court at that time. Plaintiff received no notice of this communication.
80. In response to Clark's communication, Judge Thompson initiated a show cause proceeding against Plaintiff. Thompson did so off the record and without notice to Plaintiff. Directing an administrative agency to initiate enforcement proceedings against a litigant—outside any adversarial proceeding, with no motion pending, and without notice to Plaintiff—is an administrative act to which absolute judicial immunity does not attach. *Forrester v. White*, 484 U.S. 219, 228 (1988). Thompson's initiation of the show cause proceeding based on Clark's ex parte communication, and without notice to Plaintiff, violated Plaintiff's due process rights. *Mathews v. Eldridge*, 424 U.S. 319, 333 (1976).
81. The show cause proceeding rested on the alleged violation of a release condition that did not exist. At Plaintiff's re-arraignment on the District Attorney's information, the court imposed no release conditions upon Plaintiff—no behavioral condition and no no-contact condition—as attested in the Declaration of AshLe' Penn and reflected in the record of that proceeding. Defendant Thompson presided over that re-arraignment and thus knew that no such condition had been imposed there. He nonetheless initiated a show cause proceeding charging Plaintiff with violating such a condition. A person cannot be deprived of liberty for disobeying a condition that was never imposed upon her, of which she had no notice, and with which she had no ability to comply. *Mullane v. Central Hanover Bank & Trust Co.*, 339 U.S. 306, 314 (1950); *Mathews v. Eldridge*, 424 U.S. 319, 333 (1976). To the extent any security continued from an earlier release, security is not a behavioral condition:

under ORS 135.265 the court continues only the “original security” when a charge is refiled or transferred, whereas a no-contact or other behavioral restriction is a term of conditional release that exists only if imposed under ORS 135.260. No such condition was imposed here. Thompson’s initiation of punitive proceedings on a predicate he knew did not exist was not oversight; it was a knowing deprivation of Plaintiff’s liberty without due process.

82. Plaintiff does not concede that the non-superseding posture of the January 14, 2025 indictment was proper; to the contrary, Plaintiff challenges that indictment as void. The following is pleaded as evidence of the State’s cover-up—not as any concession that the State’s charging structure was valid. The State did not make the indictment a superseding instrument. Consistent with Deputy Rambin’s documented intention, after conceding the misidentification, to “document [Plaintiff’s] actual case separately” and to charge the matter under different case numbers, the State treated the indictment as a separate accusatory vehicle rather than as a continuation of the proceeding arising from the September 18, 2024 arrest—on information and belief, to obscure the causal connection between the prosecution and the false arrest that produced it. That maneuver is itself evidence of the State’s effort to conceal the unlawful origin of the prosecution. The absence of any validly imposed release condition is established separately above under ORS 135.260, and does not depend on how the State structured its charging instruments. The manner of charging is pleaded here only as evidence of the State’s effort to conceal the prosecution’s origin in an unlawful arrest.
83. On May 13, 2025, Washington County Community Corrections officer Sawyer filed a contempt complaint in Case No. 25CN05790 based on the observations made during the May 10, 2025 home entry. The ORS 135.290 predicate for the contempt is legally defective: the observations on which the contempt is based were made during a warrantless entry that violated the Fourth Amendment. The security release

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- provision of ORS 135.265 does not authorize the use of evidence obtained during an unlawful entry to support a contempt proceeding. The contempt in Case No. 25CN05790 is the direct fruit of the Fourth Amendment violation.
84. On or about June 10, 2025, Washington County attorney Stiefer sent a communication that documented the Clark-Thompson ex parte chain described in paragraphs –. That communication is the sole contemporaneous documentary evidence of the ex parte chain that initiated the contempt proceeding. The State has not produced that communication in discovery. Plaintiff pleads its existence on the basis of information and belief. The State’s failure to produce a communication that documents the origin of a pending contempt proceeding constitutes a Brady violation. *Brady v. Maryland*, 373 U.S. 83, 87 (1963); *Giglio v. United States*, 405 U.S. 150, 154 (1972).
85. On or about December 29, 2025, an arrest warrant affidavit was filed in connection with the bail revocation that followed the May 10, 2025 entry and the contempt proceeding. That affidavit contains at least four defects, including alterations to contact information. The affidavit does not disclose that the enforcement action originated in Clark’s ex parte communication to Thompson. The concealment of the contempt origin in the warrant affidavit is consistent with a deliberate effort to suppress the Clark-Thompson chain from judicial review.
86. On February 19, 2026, Deputy District Attorney William Stabler filed a *State v. Roberts* objection in Case No. 24CR49043, characterizing Plaintiff as having “fired” two of her appointed lawyers. That characterization is false. On April 28, 2025, Judge Thompson found on the record that Plaintiff had not discharged her counsel but that counsel had withdrawn. Stabler’s filing directly contradicted Thompson’s own judicial finding and misrepresented that finding to the presiding judge assigned to rule on the *Roberts* matter.
87. Prior to the hearing at which the *Roberts* objection was to be decided, Plaintiff

requested permission to appear remotely. Judge Thompson denied that request. Thompson's denial ensured that Stabler's misrepresentation of Thompson's own April 28, 2025 finding would reach the presiding judge without correction by Plaintiff. Thompson's denial of remote appearance, in the context of a hearing at which a misrepresentation of his own prior finding was to be adjudicated, is an administrative act to which absolute judicial immunity does not attach. *Forrester v. White*, 484 U.S. 219, 228 (1988).

Protecting the Error—The Concealment Layer: Suppression of Evidence Across All Four Chains

The facts in this section establish that the evidence necessary to challenge each of the four causal chains has been systematically withheld or suppressed: the grand jury transcript (Chain A), the body-worn camera footage of the four executing deputies (Chain B), the Stiefer communication (Chain D), and the records sought in C008202, C008691, and the Johnston request (Chain C). The coordinated withholding of this evidence across all four chains supports Count XII (Brady/concealment) and Count XIII (Monell Leg 2 / coordinated suppression custom).

88. The grand jury transcript from the January 14, 2025 proceeding in Case No. 24CR49043, including Baker's testimony, has not been produced to Plaintiff. That transcript is material to Plaintiff's ability to challenge the indictment and to establish the Brady violation described in paragraph .
89. Body-worn camera footage from each of the four deputies who entered Plaintiff's home on May 10, 2025 (Does 1–4) has not been produced to Plaintiff. That footage is material to establishing the circumstances of the entry, the absence of exigent circumstances, and the observations made during the entry that were used to support the bail revocation.

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90. The Stiefer communication of June 10, 2025, documenting the Clark-Thompson ex parte chain, has not been produced to Plaintiff. That communication is the sole contemporaneous documentary evidence of the origin of the contempt proceeding in Case No. 25CN05790.
 91. The records sought in public records requests C008202 (Rolfe-Washington communications), C008691 (Community Corrections staffing/layoff records), and the Johnston request (dependency proceeding records) have not been produced. Those records are the only source through which the factual predicates for the ORS 144.350 administrative order and the warrantless home entry can be verified.
 92. The withholding of evidence across all four chains is not coincidental. The grand jury transcript, the body-worn camera footage, the Stiefer communication, and the records requests all concern the same set of events: the September 18, 2024 arrest, the January 14, 2025 indictment, and the May 10, 2025 home entry. The coordinated withholding of this evidence across multiple proceedings and multiple agencies is consistent with a custom or practice of coordinated suppression, as alleged in Count XIII.

The Error Reaches Her Child—Extension of the Warrants into the Dependency Proceeding, 2025–2026

The facts in this section establish that the warrants originating from the void indictment, the notice blackout, and the warrantless home entry were used across a separate judicial proceeding to deny Plaintiff records access, obstruct her filings, restrict her contact with her daughter, and defer adjudication of her parental rights pending her apprehension. These facts support Counts IX, X, and XI.

93. Beginning in 2025, ODHS caseworkers David Milne, Heather Kiddo, and Angela Bennett invoked the outstanding warrants against Plaintiff in reports submitted to the

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- Washington County Circuit Court in dependency proceeding 25JU04261, at hearings in that proceeding, and in communications with third parties. The warrants were used as a basis to deny Plaintiff parent-child contact, to restrict the clerk's acceptance of Plaintiff's filings, and to defer adjudication of Plaintiff's pending motion to dismiss pending Plaintiff's apprehension—conditioning access to justice on submission to arrest.
94. On September 6, 2025, Heather Kiddo and Angela Bennett took Plaintiff's minor daughter into protective custody without a court order. No exigent circumstances justified the removal without prior judicial authorization.
95. Judge Rini denied Plaintiff's request for access to records in proceeding 25JU04261 through the court's administrative records-approval procedure, conditioning inspection on Plaintiff's in-person appearance at the courthouse while, on information and belief, intending Plaintiff's arrest upon appearance. Judge Rini also restricted the clerk's acceptance of Plaintiff's filings in that proceeding.
96. Sonya Faulkner, as ODHS District 16 Interim Manager, received actual, documented notice of her subordinates' use of the warrants to deny Plaintiff contact with her daughter and to condition agency cooperation on Plaintiff's submission to demands for which no lawful predicate was identified. Faulkner failed to correct those violations and permitted them to continue. *Starr v. Baca*, 652 F.3d 1202, 1207 (9th Cir. 2011).

CLAIMS FOR RELIEF

The fourteen claims that follow are not fourteen separate grievances. They are one constitutional error—Deputy Rambin's misidentification arrest of Plaintiff—and the successive acts by which Washington County and its officials sought to protect that error from correction. Each Count states an independent constitutional violation; read together, they establish the municipal custom of institutional containment alleged in Counts VI and XIII.

Count I — False Arrest in Violation of the Fourth Amendment
(42 U.S.C. § 1983 — Against Rambin)

97. Plaintiff realleges and incorporates by reference all preceding paragraphs as though fully set forth herein.
98. The Fourth Amendment prohibits seizure of a person without a warrant or individualized probable cause. *Illinois v. Gates*, 462 U.S. 213, 238 (1983). Probable cause must exist at the moment of arrest; it cannot be supplied by investigation conducted after the arrest. *Devenpeck v. Alford*, 543 U.S. 146, 152 (2004).
99. At the time of Plaintiff's arrest on September 18, 2024, Rambin lacked a warrant and lacked individualized probable cause to believe Plaintiff had committed any offense. Rambin placed Plaintiff in handcuffs before Orozco had exited his vehicle, before any witness had been interviewed, and before any identification inquiry had been conducted. The investigation purporting to supply probable cause—Rambin's December 27, 2024 supplemental report—was filed three months after the arrest. Rambin's own report confirms the misidentification.
100. Rambin acted under color of state law. His conduct was not objectively reasonable. *Pearson v. Callahan*, 555 U.S. 223, 231 (2009). Specifically: (a) the CAD narrative log establishes that Rambin entered 'ONE DETAINED' at 21:44 before Orozco had run Plaintiff's driver's license query; (b) the reports of Rambin, Orozco, and Stone contain a circular probable cause attribution in which each officer defers to the others and no officer articulates an individualized basis for concluding that the woman detained was the woman in the September 17 surveillance footage; (c) Rambin's own December 27, 2024 supplemental report acknowledges in writing that the September 17 suspect was not Plaintiff; (d) the probable cause affidavit exists in two versions with different dollar figures, was sworn before a law enforcement officer rather than a neutral magistrate, and was never filed with the court.
101. The show cause and contempt proceedings compounded these violations, and did

so knowingly. As set forth above, the court imposed no release condition upon Plaintiff at her re-arraignment on the District Attorney's information, and Defendant Thompson—who presided over that re-arraignment—knew that no such condition had been imposed there. Thompson nonetheless initiated a show cause proceeding charging Plaintiff with violating a condition that did not exist—off the record, without notice to Plaintiff, and while Plaintiff was without counsel. Subjecting a person to the loss of her liberty for disobeying a directive the court knew it had never issued is not a procedural misstep; it is a knowing deprivation of liberty without due process. *Mullane*, 339 U.S. at 314; *Mathews*, 424 U.S. at 333. That deliberate use of a predicate Thompson knew to be nonexistent also confirms that the proceedings against Plaintiff were maintained in bad faith. *Dombrowski v. Pfister*, 380 U.S. 479, 490 (1965).

102. **Qualified Immunity.** Rambin is not entitled to qualified immunity. The right to be free from arrest without individualized probable cause was clearly established as of September 18, 2024. *Illinois v. Gates*, 462 U.S. 213 (1983); *Beck v. Ohio*, 379 U.S. 89, 91 (1964). The rule that probable cause must exist at the moment of arrest, not be constructed after the fact, was clearly established. *Devenpeck*, 543 U.S. at 152. The rule that racial proximity to a suspect, without more, does not supply individualized probable cause was clearly established. *Ybarra v. Illinois*, 444 U.S. 85, 91 (1979). No reasonable deputy sheriff could have believed that handcuffing a person before any identification inquiry, based solely on her presence near another person of the same race, was constitutionally permissible.
103. As a direct and proximate result of this violation, Plaintiff suffered loss of liberty, physical and emotional harm, and damages in amounts to be proven at trial.

Count II — Continued Unlawful Seizure (42 U.S.C. § 1983
— Against Rambin, Bineham, Clark, and Washington County)

104. Plaintiff realleges and incorporates by reference all preceding paragraphs as though fully set forth herein.
105. The Fourth Amendment prohibits continued detention once the basis for seizure has been negated. *Manuel v. City of Joliet*, 580 U.S. 357, 364–65 (2017). A warrant that is the direct fruit of a Fourth Amendment violation cannot supply lawful authority for continued seizure. *Wong Sun v. United States*, 371 U.S. 471, 484–85 (1963).
106. The current arrest warrant traces directly to the bail revocation that was itself predicated on information gathered during the warrantless home entry of May 10, 2025. Bineham directed the entry, used the fruits of the entry to support the bail revocation, and Clark initiated the enforcement chain through the ex parte communication to Thompson. Washington County has maintained and enforced the warrant with knowledge of its tainted origin.
107. As a second and independent basis for Count II, Plaintiff’s continued detention following the September 18, 2024 arrest was unlawful because no judicial probable cause determination was ever made. The Fourth Amendment requires a prompt judicial determination of probable cause following a warrantless arrest. *Gerstein v. Pugh*, 420 U.S. 103, 114 (1975). The 36-hour ORS 133.145 window and the 48-hour *McLaughlin* window both expired without any judicial action. The probable cause order form in the State’s own discovery production contains every judicial field blank. No signed order appears in the court’s own file. Rambin’s affidavit was never filed with the court. Every day of pretrial supervision from September 20, 2024 forward has been unlawful. Washington County, as the entity responsible for the booking and post-arrest process, is directly liable for this systemic failure.
108. **Qualified Immunity.** Defendants Rambin, Bineham, and Clark are not entitled to qualified immunity. The rule that evidence obtained during an unlawful entry cannot

be used to extend a seizure was clearly established as of May 10, 2025. *Wong Sun*, 371 U.S. at 484–85; *Manuel*, 580 U.S. at 364–65. The rule that an administrative order under ORS 144.350 does not authorize home entry was clearly established. *Payton*, 445 U.S. at 589–90. No reasonable officer could have believed that using the fruits of an unlawful entry to revoke bail, and then maintaining the resulting warrant, was constitutionally permissible.

109. As a direct and proximate result of this violation, Plaintiff suffers continuing deprivation of liberty and damages in amounts to be proven at trial.

**Count III — Unlawful Home Entry (42 U.S.C. § 1983
— Against Thompson, Bineham, Clark, and Does 1–4)**

110. Plaintiff realleges and incorporates by reference all preceding paragraphs as though fully set forth herein.
111. The Fourth Amendment prohibits warrantless entry into a private home absent a valid judicial warrant, consent, or exigent circumstances. *Payton v. New York*, 445 U.S. 573, 589–90 (1980). A warrant authorizing arrest of a third party does not authorize entry into a home. *Steagald v. United States*, 451 U.S. 204, 211–12 (1981). An administrative order under ORS 144.350 is not a judicial warrant and does not authorize home entry.
112. On May 10, 2025, Does 1–4 entered Plaintiff’s home without a valid judicial warrant, without consent, and without exigent circumstances, acting pursuant to a LEDS entry made by Bineham that mislabeled an ORS 144.350 administrative order as a “felony warrant.” Clark initiated the enforcement chain through the ex parte communication to Thompson. Thompson’s ex parte direction to the release office to seek a violation report, outside any pending adversarial proceeding, was the proximate cause of the home entry. That direction is an administrative act to which absolute judicial immunity does not attach. *Forrester v. White*, 484 U.S. 219, 228 (1988).

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113. **Qualified Immunity.** Defendants Thompson, Bineham, Clark, and Does 1–4 are not entitled to qualified immunity. The rule that a home may not be entered without a judicial warrant was clearly established as of May 10, 2025. *Payton*, 445 U.S. at 589–90. The rule that an administrative order does not constitute a judicial warrant for purposes of home entry was clearly established. *Steagald*, 451 U.S. at 211–12. The rule that judicial immunity does not attach to administrative acts was clearly established. *Forrester*, 484 U.S. at 228. No reasonable officer or official could have believed that entry into a private home pursuant to an administrative order mislabeled in LEDS as a “felony warrant” was constitutionally permissible.
114. As a direct and proximate result of this violation, Plaintiff suffered invasion of her home, bail revocation, and the issuance of a current arrest warrant that is the direct fruit of the Fourth Amendment violation. Plaintiff suffered damages in amounts to be proven at trial.

**Count IV — First Amendment Retaliation (42 U.S.C. § 1983
— Against Mendes and Washington County)**

115. Plaintiff realleges and incorporates by reference all preceding paragraphs as though fully set forth herein.
116. The First Amendment protects the right of association and the right to petition the government for redress of grievances. Retaliation by a government actor against an individual for the exercise of First Amendment rights, causing concrete harm, is actionable under § 1983. *Nieves v. Bartlett*, 587 U.S. 391, 398 (2019); *BE & K Constr. Co. v. NLRB*, 536 U.S. 516, 524–25 (2002).
117. On September 19, 2025, Mendes denied Plaintiff’s fee waiver application citing Washington County’s “evidence” of Plaintiff’s associations and Plaintiff’s intended use of the records. That denial was motivated by Plaintiff’s exercise of her First Amendment rights—specifically, her association with persons or organizations the

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- County had placed under intelligence surveillance, and her use of the judicial process to challenge the County's conduct. The denial caused concrete harm by impeding Plaintiff's access to the courts.
118. The use of associational information as a basis for an adverse administrative determination additionally violates ORS 181A.250. The Mendes denial letter is a written admission of the violation.
119. **Qualified Immunity.** Mendes is not entitled to qualified immunity. The rule that a government official may not use a person's associations as the basis for an adverse administrative determination was clearly established as of September 19, 2025. *Healy v. James*, 408 U.S. 169, 181–82 (1972); *NAACP v. Alabama*, 357 U.S. 449, 460–62 (1958). The rule that retaliation for the exercise of First Amendment rights is actionable under § 1983 was clearly established. *Nieves*, 587 U.S. at 398. No reasonable HR manager could have believed that denying a fee waiver application on the basis of the applicant's associations was constitutionally permissible.
120. Washington County is liable under *Monell* because Mendes acted pursuant to Washington County policy or custom, or because Washington County ratified his conduct. The Mendes denial is the written product of that policy.
121. As a direct and proximate result of this violation, Plaintiff suffered impeded access to the courts and damages in amounts to be proven at trial.

**Count V — Equal Protection — Selective Enforcement Based on Race
(42 U.S.C. § 1983 — Against Rabin, Gerten, and Washington County)**

122. Plaintiff realleges and incorporates by reference all preceding paragraphs as though fully set forth herein.
123. The Equal Protection Clause of the Fourteenth Amendment prohibits selective enforcement of the law based on race. *Whren v. United States*, 517 U.S. 806, 813 (1996). A plaintiff may establish selective enforcement by showing that the defen-

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- dant's decision was motivated by discriminatory purpose and had a discriminatory effect. *Village of Arlington Heights v. Metro. Hous. Dev. Corp.*, 429 U.S. 252, 265–66 (1977).
124. Plaintiff was arrested because she was a Black woman in proximity to another Black woman who was the actual suspect. The two women shared no identifying characteristics other than race. No individualized probable cause existed as to Plaintiff. The decision to arrest Plaintiff was motivated, at least in part, by race.
125. Prosecution of Plaintiff continued after the arresting officer acknowledged the misidentification in writing and after the evidentiary record demonstrated the absence of individualized probable cause. Gerten directed Rambin to conduct a post-arrest investigation to supply probable cause that did not exist at the time of arrest. That direction is investigatory, not prosecutorial, and is not shielded by absolute immunity. *Buckley*, 509 U.S. at 273.
126. **Qualified Immunity.** Rambin and Gerten are not entitled to qualified immunity. The rule that race alone does not supply individualized probable cause was clearly established as of September 18, 2024. *Ybarra v. Illinois*, 444 U.S. 85, 91 (1979); *Brown v. City of Oneonta*, 221 F.3d 329, 337–38 (2d Cir. 2000). The rule that continued prosecution after written acknowledgment of misidentification, without independent probable cause, violates the Equal Protection Clause was clearly established. No reasonable officer or prosecutor could have believed that arresting and continuing to prosecute a person based on racial proximity to a suspect, after acknowledging misidentification in writing, was constitutionally permissible.
127. As a direct and proximate result of this violation, Plaintiff suffered loss of liberty, reputational harm, and damages in amounts to be proven at trial.

**Count VI — Monell Leg 1: Unconstitutional Custom of Relay-Chain Probable Cause
(42 U.S.C. § 1983 — Against Washington County)**

128. Plaintiff realleges and incorporates by reference all preceding paragraphs as though fully set forth herein.
129. Washington County, through the Washington County Sheriff's Office, maintained a custom or practice of effecting arrests based on relay-chain probable cause: one officer communicates a probable cause determination to another, who then effects an arrest without independent verification of the factual predicate. *Monell v. Dep't of Soc. Servs.*, 436 U.S. 658, 690–91 (1978).
130. That custom was the moving force behind Plaintiff's arrest. Rabin communicated his probable cause determination to Orozco. Orozco effected the arrest—or was present while Rabin effected the arrest—without independently verifying whether Plaintiff was the individual depicted in the surveillance footage Rabin had collected two hours earlier. The relay-chain custom caused Plaintiff's arrest without individualized probable cause.
131. Washington County failed to train its deputies to require individualized probable cause before arrest and failed to supervise the relay-chain practice. That failure to train and supervise was the moving force behind the constitutional violation. *City of Canton v. Harris*, 489 U.S. 378, 388–89 (1989).
132. Washington County also maintained three additional unconstitutional policies or customs that were each a moving force behind Plaintiff's constitutional injuries. First, Washington County maintained a policy or custom of failing to ensure that post-arrest judicial probable cause determinations were completed within the 36-hour ORS 133.145 window and the 48-hour *McLaughlin* window. The blank probable cause order in the State's own discovery production—every judicial field empty—establishes that the failure was not an isolated incident but the product of a system that generated the required form without ensuring its completion. Sec-

ond, the Washington County District Attorney's Office maintained a written policy prohibiting more than one DDA from having an open case on a single defendant. That policy was violated when DDA Stabler filed in 24CR27775 while DDA Gerten remained on 24CR49043. The violation resulted in a DDA with incomplete knowledge of the record making false representations to the court about Plaintiff's conduct. Third, the Washington County District Attorney's Office maintained a written policy providing that cases with fewer than three witnesses should not be routed to the grand jury. Plaintiff's case had two witnesses. The DA's Office routed it to the grand jury anyway, in violation of its own policy, during the PJO gap, producing a void indictment. Each of these policy violations was a moving force behind the constitutional deprivations Plaintiff suffered.

133. As a direct and proximate result of this custom, Plaintiff suffered the constitutional violations described herein and damages in amounts to be proven at trial.

**Count VII — Procedural Due Process (42 U.S.C. § 1983
— Against Thompson, Gerten, and Washington County)**

134. Plaintiff realleges and incorporates by reference all preceding paragraphs as though fully set forth herein.
135. The Due Process Clause of the Fourteenth Amendment prohibits the deprivation of liberty without notice and an opportunity to be heard. *Mathews v. Eldridge*, 424 U.S. 319, 333 (1976). The right to notice and an opportunity to be heard before deprivation of a liberty interest was clearly established as of all relevant dates. *Mullane v. Cent. Hanover Bank & Tr. Co.*, 339 U.S. 306, 314 (1950).
136. Plaintiff was deprived of her right to a preliminary hearing at which probable cause could have been challenged. Plaintiff's suppression motion was denied without State opposition, without a hearing, and without any opportunity for Plaintiff to be heard. Plaintiff's demurrer challenging subject matter jurisdiction has not been ruled

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- upon. Plaintiff was excluded from proceedings through the OPDC notice blackout. Plaintiff was denied the ability to appear and correct a material misrepresentation of the court's own prior finding. The court stated on the record that Plaintiff "doesn't get to decide what gets filed" in her own case, and refused to acknowledge her pro se filings, while simultaneously failing to provide the legal representation that would be required to make that position constitutionally permissible.
137. **Qualified Immunity.** Thompson and Gerten are not entitled to qualified immunity. The rule that a suppression motion may not be denied without notice and an opportunity to be heard was clearly established as of June 4, 2025. *Mathews*, 424 U.S. at 333. The rule that a court may not route hearing notices to a non-party placeholder and then issue a failure-to-appear warrant was clearly established. The rule that a judge's administrative acts do not receive absolute immunity was clearly established. *Forrester*, 484 U.S. at 228. No reasonable judge or prosecutor could have believed that any of the conduct described in this Count was constitutionally permissible.
138. As a direct and proximate result of these violations, Plaintiff suffered continuing deprivation of liberty and damages in amounts to be proven at trial.

Count VIII — Access to Courts (42 U.S.C. § 1983
— Against Thompson, Rini, Beck, and Washington County)

139. Plaintiff realleges and incorporates by reference all preceding paragraphs as though fully set forth herein.
140. The First and Fourteenth Amendments guarantee the right of meaningful access to the courts. *Lewis v. Casey*, 518 U.S. 343, 351 (1996). To state an access-to-courts claim, a plaintiff must show that the defendant's conduct caused an actual injury to a non-frivolous legal claim. *Christopher v. Harbury*, 536 U.S. 403, 415 (2002).
141. Defendants Thompson, Rini, and Beck, acting under color of state law, impeded

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- Plaintiff's access to the courts by: routing hearing notices to a placeholder entity; refusing to rule on Plaintiff's demurrer; denying Plaintiff remote appearance at a material hearing; refusing to acknowledge Plaintiff's pro se filings; restricting the clerk's acceptance of Plaintiff's filings in dependency proceeding 25JU04261; and conditioning records inspection on in-person appearance while, on information and belief, intending Plaintiff's arrest upon appearance.
142. Each act of obstruction caused Plaintiff concrete harm to her ability to litigate her claims and defend her liberty. The non-frivolous claims injured include: the suppression motion in 24CR49043, the demurrer challenging subject matter jurisdiction, the motion to quash the failure-to-appear warrant, and the motion to dismiss in 25JU04261.
143. **Qualified Immunity.** Thompson, Rini, and Beck are not entitled to qualified immunity. The right of meaningful access to the courts was clearly established as of all relevant dates. *Lewis*, 518 U.S. at 351. The rule that a clerk may not refuse to accept a pro se litigant's filings was clearly established. *Bounds v. Smith*, 430 U.S. 817, 821 (1977). No reasonable judge or clerk could have believed that routing hearing notices to a non-party, refusing to rule on a jurisdictional demurrer, or restricting a pro se litigant's filings was constitutionally permissible.
144. As a direct and proximate result of these violations, Plaintiff suffered impeded access to the courts and damages in amounts to be proven at trial.

Count IX — Malicious Prosecution (42 U.S.C. § 1983
— Against Gerten and Washington County)

145. Plaintiff realleges and incorporates by reference all preceding paragraphs as though fully set forth herein.
146. A § 1983 malicious prosecution claim requires: (1) the defendant prosecuted the plaintiff; (2) without probable cause; (3) with malice; (4) the prosecution terminated

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- in plaintiff's favor; and (5) plaintiff suffered a deprivation of liberty. *Awabdy v. City of Adelanto*, 368 F.3d 1062, 1066 (9th Cir. 2004). To the extent favorable termination has not yet occurred, Plaintiff pleads this count in the alternative and requests that it be stayed, not dismissed, pending resolution of the state proceeding. *Deakins v. Monaghan*, 484 U.S. 193, 201–04 (1988).
147. Gerten initiated and continued prosecution of Plaintiff without individualized probable cause. The probable cause affidavit was contradicted by three contemporaneous reports at the time it was submitted. Rambin's December 27, 2024 supplemental report acknowledged the misidentification in writing. Gerten knew of that acknowledgment and continued the prosecution. Gerten directed Rambin to conduct a post-arrest investigation to supply probable cause that did not exist at the time of arrest—an investigatory act to which only qualified immunity attaches. *Buckley v. Fitzsimmons*, 509 U.S. 259, 273 (1993). Gerten knew or should have known that Baker's grand jury testimony contradicted the sworn affidavit and failed to correct it.
148. The prosecution was continued under a void indictment returned by a grand jury operating without lawful authority. The prosecution has been maintained without hope of a valid conviction. *Dombrowski v. Pfister*, 380 U.S. 479, 490 (1965).
149. **Qualified Immunity.** Gerten is not entitled to qualified immunity for her investigatory conduct. The rule that a prosecutor acting in an investigatory capacity is entitled only to qualified immunity was clearly established as of all relevant dates. *Buckley*, 509 U.S. at 273. The rule that continued prosecution after written acknowledgment of the absence of probable cause violates the Fourth Amendment was clearly established. *Manuel v. City of Joliet*, 580 U.S. 357, 364–65 (2017). No reasonable prosecutor could have believed that directing a post-arrest investigation to supply missing probable cause, or continuing prosecution after the arresting officer admitted misidentification in writing, was constitutionally permissible.

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150. Washington County is liable under *Monell* because the prosecution was maintained pursuant to the relay-chain probable cause custom described in Count VI and the coordinated suppression custom described in Count XIII, each of which was the moving force behind the continuation of the prosecution.
151. As a direct and proximate result of this violation, Plaintiff suffered deprivation of liberty and damages in amounts to be proven at trial.

Count X — Void Indictment / Substantive Due Process
(42 U.S.C. § 1983 — Against Washington County)

152. Plaintiff realleges and incorporates by reference all preceding paragraphs as though fully set forth herein.
153. The Fifth and Fourteenth Amendments prohibit the deprivation of liberty under a void indictment. An indictment returned by a grand jury operating without lawful authority is void *ab initio* and cannot confer subject matter jurisdiction on any court. *State v. Lawrence*, 12 Or. 297 (1885). Prosecution under a void indictment deprives the defendant of liberty without due process of law. *Hurtado v. California*, 110 U.S. 516, 538 (1884).
154. The indictment in Case No. 24CR49043 was returned on January 14, 2025, during the gap between PJO 325 (expired January 3, 2025) and PJO 350 (effective January 31, 2025). The Washington County Trial Court Administrator, Richard Moellmer, confirmed this gap in writing. The grand jury had no lawful authority to act. The indictment is void *ab initio*.
155. Two additional facts compound the constitutional defect. First, the witness who testified before the grand jury, Deputy Baker, was substituted for Fillis, the only witness with personal knowledge of the events of September 18, 2024. Baker had no personal knowledge of the charged conduct. Grand jury testimony by a witness without personal knowledge, substituted for the witness with personal knowledge,

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- is not a basis for a valid true bill. Second, the Washington County District Attorney's Office maintained a written policy providing that cases with fewer than three witnesses should not be routed to the grand jury. Plaintiff's case had two witnesses. The DA's Office routed it to the grand jury anyway—in violation of its own policy, during the PJO gap, producing a void indictment on a case that should never have been presented.
156. Washington County has continued to prosecute Plaintiff under this void indictment, depriving her of liberty without due process of law. The Washington County Circuit Court has refused to rule on Plaintiff's demurrer challenging its subject matter jurisdiction, in violation of ORS 1.050, while continuing to exercise jurisdiction over Plaintiff's liberty.
157. As a direct and proximate result of this violation, Plaintiff suffered continuing deprivation of liberty and damages in amounts to be proven at trial.

Count XI — Familial Association and Unlawful Child Removal
(42 U.S.C. § 1983 — Against Kiddo, Bennett, Milne, Faulkner, and Washington
County)

158. Plaintiff realleges and incorporates by reference all preceding paragraphs as though fully set forth herein.
159. The Fourteenth Amendment protects the fundamental right of parents to the care, custody, and companionship of their children. *Troxel v. Granville*, 530 U.S. 57, 65 (2000). Removal of a child from parental custody without a court order, absent exigent circumstances, violates the Fourteenth Amendment. *Wallis v. Spencer*, 202 F.3d 1126, 1138 (9th Cir. 2000). The right to familial association was clearly established as of September 6, 2025.
160. On September 6, 2025, Defendants Kiddo and Bennett took Plaintiff's minor daughter into protective custody without a court order. No exigent circumstances justi-

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- fied the removal without prior judicial authorization. The removal was effected in the context of a dependency proceeding in which the outstanding warrants against Plaintiff—themselves the fruit of constitutional violations—had been used to restrict Plaintiff’s access to her child and to her filings.
161. Defendants Milne, Kiddo, and Bennett invoked the outstanding warrants against Plaintiff as a basis to deny Plaintiff parent-child contact, to obstruct Plaintiff’s filings in dependency proceeding 25JU04261, and to defer adjudication of Plaintiff’s parental rights pending her apprehension—conditioning Plaintiff’s access to her child on submission to arrest. Each of those warrants is itself the fruit of constitutional violations: the failure-to-appear warrant traces to the OPDC notice blackout, and the bail revocation warrant traces to the warrantless home entry of May 10, 2025.
162. **Qualified Immunity.** Kiddo, Bennett, and Milne are not entitled to qualified immunity. The rule that removal of a child without a court order, absent exigent circumstances, violates the Fourteenth Amendment was clearly established as of September 6, 2025. *Wallis*, 202 F.3d at 1138; *Rogers v. County of San Joaquin*, 487 F.3d 1288, 1294 (9th Cir. 2007). The rule that using tainted warrants to restrict a parent’s access to her child and to the courts violates the Fourteenth Amendment was clearly established. No reasonable caseworker could have believed that removing a child without a court order, or using warrants known to be the fruit of constitutional violations to condition parental access on submission to arrest, was constitutionally permissible.
163. Defendant Faulkner, as ODHS District 16 Interim Manager, received actual, documented notice of her subordinates’ use of the warrants to deny Plaintiff contact with her daughter and to condition agency cooperation on Plaintiff’s submission to demands for which no lawful predicate was identified. Faulkner failed to correct those violations and permitted them to continue. *Starr v. Baca*, 652 F.3d 1202, 1207 (9th

Cir. 2011). Supervisory liability attaches where a supervisor knew of the violations and failed to act to prevent them.” *Id.*

164. **Qualified Immunity — Faulkner.** Faulkner is not entitled to qualified immunity.

The rule that a supervisor who has actual notice of constitutional violations by subordinates and fails to act is liable under § 1983 was clearly established as of all relevant dates. *Starr*, 652 F.3d at 1207. No reasonable supervisor could have believed that, upon receiving documented notice that subordinates were using tainted warrants to deny a parent access to her child and to the courts, inaction was constitutionally permissible.

165. As a direct and proximate result of these violations, Plaintiff suffered deprivation of her fundamental right to familial association and damages in amounts to be proven at trial.

Count XII — Brady Violations and Suppression of Material Evidence

(42 U.S.C. § 1983 — Against Gerten and Washington County)

166. Plaintiff realleges and incorporates by reference all preceding paragraphs as though fully set forth herein.

167. The Due Process Clause of the Fourteenth Amendment requires the prosecution to disclose evidence favorable to the accused that is material to guilt or punishment. *Brady v. Maryland*, 373 U.S. 83, 87 (1963). The obligation extends to impeachment evidence. *Giglio v. United States*, 405 U.S. 150, 154 (1972). Evidence is material if there is a reasonable probability that its disclosure would have produced a different result. *United States v. Bagley*, 473 U.S. 667, 682 (1985). The *Brady* obligation was clearly established as of all relevant dates.

168. **Brady Violation 1 — Baker Grand Jury Testimony.** Deputy Baker’s testimony before the January 14, 2025 grand jury contradicted the sworn probable cause affidavit on which the prosecution rests. Baker testified that the officers were present at

the scene for an unrelated incident.” That testimony is irreconcilable with the affidavit and with every contemporaneous police report. Baker’s testimony is favorable to Plaintiff: it directly undermines the affidavit’s account of the officers’ presence and purpose. It is material: there is a reasonable probability that disclosure would have produced a different result at the suppression hearing and at any trial. Gerten knew or should have known of Baker’s testimony and failed to disclose it. The grand jury transcript has not been produced to Plaintiff.

169. **Brady Violation 2 — Stiefer Communication.** The June 10, 2025 communication from Washington County attorney Stiefer documents the Clark-Thompson ex parte chain that initiated the contempt proceeding in Case No. 25CN05790. That communication is favorable to Plaintiff: it establishes that the contempt proceeding was initiated through an ex parte communication outside any pending adversarial proceeding, without notice to Plaintiff, and on the fruits of the warrantless home entry. It is material: there is a reasonable probability that disclosure would have produced a different result in the contempt proceeding and in any challenge to the bail revocation. The State has not produced that communication. Plaintiff pleads its existence on information and belief and asserts that its withholding constitutes a Brady violation.
170. **Brady Violation 3 — Body-Worn Camera Footage.** Body-worn camera footage from each of the four deputies who entered Plaintiff’s home on May 10, 2025 (Does 1–4) has not been produced to Plaintiff. That footage is favorable to Plaintiff: it would establish the circumstances of the entry, the absence of exigent circumstances, the absence of consent, and the nature of the observations made during the entry that were used to support the bail revocation. It is material: there is a reasonable probability that disclosure would have produced a different result in the suppression hearing and in any challenge to the bail revocation.
171. **Qualified Immunity — Gerten.** Gerten is not entitled to qualified immunity. The

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- Brady* obligation was clearly established as of all relevant dates. *Brady*, 373 U.S. at 87; *Giglio*, 405 U.S. at 154. No reasonable prosecutor could have believed that withholding testimony known to contradict the sworn affidavit supporting prosecution, or failing to produce body-worn camera footage from a warrantless home entry used to revoke bail, was constitutionally permissible.
172. Washington County is liable under *Monell* because the withholding of the grand jury transcript, the Stiefer communication, and the body-worn camera footage is consistent with the coordinated suppression custom described in Count XIII, which was the moving force behind the Brady violations.
173. As a direct and proximate result of these violations, Plaintiff suffered continuing deprivation of liberty, impeded access to the courts, and damages in amounts to be proven at trial.

Count XIII — Monell Leg 2: Custom of Coordinated Suppression
(42 U.S.C. § 1983 — Against Washington County)

174. Plaintiff realleges and incorporates by reference all preceding paragraphs as though fully set forth herein.
175. A municipality is liable under *Monell* where a plaintiff's constitutional injury was caused by a municipal custom or practice, even if that custom has not received formal approval through the body's official decisionmaking channels. *Monell v. Dep't of Soc. Servs.*, 436 U.S. 658, 690–91 (1978). A custom is established by showing a “persistent and widespread” practice that “although not authorized by written law, is so permanent and well settled as to constitute a custom or usage with the force of law.” *Id.* at 691 (internal quotation omitted).
176. Washington County maintained a custom and practice of coordinated suppression: the systematic use of multiple county agencies and mechanisms—public records fees, administrative fee denials, LEDS mislabeling, ex parte communications, no-

tice routing failures, and filing restrictions—to suppress the evidence necessary for Plaintiff to challenge the constitutional violations described in this Complaint.

177. The coordinated suppression custom is established by the following facts, taken together:

- a. The Mendes denial of September 19, 2025, expressly cited Washington County’s “evidence” of Plaintiff’s associations and Plaintiff’s intended use of the records as the basis for the denial. That denial is a written admission that Washington County’s Human Resources department received and acted on law enforcement intelligence about Plaintiff. The transfer of law enforcement intelligence from the Sheriff’s Office or Community Corrections to the Human Resources department for use in an administrative fee determination is inter-agency sharing prohibited by ORS 181A.250 and is direct evidence of a coordinated suppression custom.
- b. The \$7,846.60 fee assessed on public records request C008691—seeking Community Corrections staffing and layoff records that are the only source through which the Rolfe “unavailable” recital can be verified—is not rationally related to the actual cost of production. That fee, assessed on an indigent pro se litigant seeking records necessary to challenge a warrantless home entry, functions as a de facto denial and is consistent with a custom of using the public records fee process as a suppression mechanism.
- c. The constructive denial of the Johnston request of March 27, 2026, the delays and fees imposed on request C008202, and the Mendes denial together constitute four separate records denials across four separate requests spanning ten months. The persistence and breadth of the denials across multiple agencies and requestors is consistent with a custom rather

than isolated individual decisions.

- d. The LEDS mislabeling of the ORS 144.350 administrative order as a “felony warrant” suppressed the legal distinction between an administrative order and a judicial warrant from the executing deputies, from Plaintiff, and from any reviewing court. That mislabeling was made by a Community Corrections supervisor who knew or should have known the distinction.
 - e. The routing of hearing notices to the OPDC placeholder suppressed Plaintiff’s ability to appear at and challenge proceedings in Case No. 24CR49043. The court’s refusal to rule on the demurrer, the denial of the suppression motion without a hearing, and the clerk’s restriction of Plaintiff’s filings in 25JU04261 are consistent with a coordinated effort to prevent Plaintiff from accessing the judicial process.
 - f. The withholding of the grand jury transcript, the Stiefer communication, and the body-worn camera footage across multiple proceedings and multiple agencies is consistent with a coordinated effort to prevent Plaintiff from establishing the factual predicates for her constitutional claims.
178. The coordinated suppression custom was the moving force behind the Brady violations in Count XII, the access-to-courts violations in Count VIII, the First Amendment retaliation in Count IV, and the continued unlawful seizure in Count II. *City of Canton v. Harris*, 489 U.S. 378, 388–89 (1989). Each of those violations was the foreseeable consequence of a custom that systematically suppressed the evidence and access necessary for Plaintiff to challenge her prosecution and detention.
179. Washington County’s failure to train its employees on the requirements of ORS 181A.250, the distinction between administrative orders and judicial warrants, and the constitutional obligations of the public records process reflects deliberate indifference to the constitutional rights of persons in Plaintiff’s position. *City of Canton*,

489 U.S. at 388–89.

180. As a direct and proximate result of this custom, Plaintiff suffered the constitutional violations described herein and damages in amounts to be proven at trial.

**Count XIV — Sixth and Fourteenth Amendments: Denial of Counsel at Critical
Stages Without Valid Waiver
(42 U.S.C. § 1983 — Against Washington County)**

181. Plaintiff realleges and incorporates by reference all preceding paragraphs as though fully set forth herein.
182. The Sixth Amendment, applied to the States through the Fourteenth Amendment, guarantees the assistance of counsel at every critical stage of a criminal proceeding. *Gideon v. Wainwright*, 372 U.S. 335 (1963). That right is not forfeited by silence. A defendant may proceed without counsel only upon a waiver that is knowing, intelligent, and voluntary, and the court bears an affirmative duty to ensure that any such waiver is valid. *Johnson v. Zerbst*, 304 U.S. 458 (1938). The right of self-representation likewise arises only where a defendant “voluntarily and intelligently” elects to forgo counsel; competence to self-represent is not the question, election is. *Faretta v. California*, 422 U.S. 806 (1975). The complete denial of counsel at a critical stage is structural error, not subject to harmless-error review. *United States v. Cronin*, 466 U.S. 648, 659 (1984).
183. On April 28, 2025, following the withdrawal of Plaintiff’s appointed counsel, the Washington County Circuit Court represented on the record that Plaintiff would be provided new counsel, that all future hearing dates were cancelled, and that no decision would be made until counsel was appointed. Plaintiff expressly declined to represent herself. Plaintiff never thereafter waived her right to counsel, and never elected to proceed pro se.
184. Notwithstanding that the County’s own records reflected that Plaintiff had no coun-

sel of record other than the OPDC placeholder that never appeared on her behalf, the State proceeded against Plaintiff at critical stages while she remained unrepresented and without any valid waiver. In particular, the hearing on the State's objection to Plaintiff's *Roberts* dismissal in 24CR27775 went forward while the State and the court knew Plaintiff was without counsel; Plaintiff was thereby required to litigate it pro se; her release was revoked and a failure-to-appear warrant issued against her. Additional adverse hearings proceeded on the same footing. At no point did any court obtain from Plaintiff the knowing, intelligent, and voluntary waiver that *Johnson v. Zerbst* and *Faretta* require. Plaintiff's competence to represent herself is immaterial; the constitutional defect is the absence of any waiver at all.

185. The same denial recurred, one step earlier, in the June 2025 show cause proceeding. That proceeding—initiated after Defendant Thompson's ex parte communication to the release office, and noticed only to a residential address Plaintiff had not occupied for years and to the OPDC placeholder that never appeared—advanced against Plaintiff while she was both unrepresented and unnotified, and produced a warrant for her arrest. The show cause charged Plaintiff with violating a release condition that had never been imposed upon her at her re-arraignment on the District Attorney's information—a fact within Defendant Thompson's own knowledge. Whether a behavioral condition from an earlier release silently carries forward to a later charging instrument without being specifically re-imposed is a question of Oregon criminal procedure that no unrepresented lay person could be expected to identify or contest, and precisely the function that counsel serves. The absence of counsel was therefore not harmless: it left Plaintiff to face a contempt-type proceeding, and the loss of her liberty, on a predicate that competent counsel would have challenged as never imposed and never communicated to her.
186. This was not an isolated lapse but the operation of a known, systemic failure. In *Betschart v. State of Oregon*, No. 23-2270, slip op. at 17–18 (9th Cir. May 31,

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- 2024), the Ninth Circuit found that Washington County—the same county, and as to its Circuit Court judges and Sheriff the same defendants named here—maintained a system that left pretrial defendants without the counsel to which they were constitutionally entitled. Plaintiff’s experience is a continuation of that documented systemic failure.
187. Washington County is liable under *Monell v. Dep’t of Soc. Servs.*, 436 U.S. 658, 690–91 (1978). The County maintained a custom and practice of entering a placeholder appointment (OPDC) that never appears, and then permitting liberty-affecting proceedings to go forward against defendants the County knows to be unrepresented and who have not waived counsel. *Betschart* confirms the persistent and systemic character of that custom. It was the moving force behind the denial of counsel described above.
188. For this Court, Plaintiff seeks declaratory and prospective relief and damages against Washington County; she seeks no relief against any judicial officer in an individual capacity for any judicial act. As a direct and proximate result of the County’s custom, Plaintiff was deprived of counsel at critical stages, her release was revoked and a warrant issued against her while she stood unrepresented, and she suffered the loss of liberty and the injuries described in this Complaint, in amounts to be proven at trial.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff AshLe’ Penn respectfully requests that this Court enter judgment in her favor and against Defendants as follows:

- A. Compensatory damages against all Defendants, jointly and severally where applicable, in amounts to be proven at trial, for all injuries caused by the constitutional violations described herein, including loss of liberty, physical and emotional harm, impeded access to the courts, deprivation of familial association, and reputational

harm;

B. Punitive damages against all individual Defendants in their individual capacities, in amounts sufficient to deter future misconduct, on the ground that each individual Defendant acted with deliberate indifference to, or reckless disregard of, Plaintiff's federally protected rights;

C. A declaration pursuant to 28 U.S.C. § 2201 that:

- (i) Plaintiff's arrest on September 18, 2024 violated the Fourth Amendment;
- (ii) The indictment in Case No. 24CR49043 is void *ab initio* for having been returned by a grand jury operating without lawful authority;
- (iii) The May 10, 2025 entry into Plaintiff's home violated the Fourth Amendment;
- (iv) The current arrest warrant, being the direct fruit of the May 10, 2025 Fourth Amendment violation, cannot supply lawful authority for Plaintiff's seizure;
- (v) The Mendes denial of September 19, 2025 violated the First Amendment and ORS 181A.250;
- (vi) Defendants' conduct constituted a coordinated custom of suppression in violation of the First, Fourth, and Fourteenth Amendments;

D. Preliminary and permanent injunctive relief directing Defendants to:

- (i) Quash the warrant issued from the failure-to-appear hearing for which Plaintiff received no notice, and quash any warrant that is the direct fruit of the May 10, 2025 warrantless home entry;
- (ii) Cease enforcement of any warrant predicated on the bail revocation that was itself predicated on observations made during the May 10, 2025 warrantless home entry;

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- (iii) Restore Plaintiff's access to her minor daughter pending adjudication of dependency proceeding 25JU04261 on the merits, and cease using the outstanding warrants as a basis to restrict Plaintiff's parental contact or to defer adjudication of Plaintiff's parental rights;
 - (iv) Cease using Plaintiff's associations as a basis for any adverse administrative determination, including fee waiver denials;
 - (v) Process Plaintiff's pending fee waiver applications in accordance with ORS 192.324 and without reference to Plaintiff's associations or the pending criminal proceedings;
 - (vi) Produce the grand jury transcript from Case No. 24CR49043, the body-worn camera footage from the May 10, 2025 home entry, and the Stiefer communication of June 10, 2025, to the extent not already produced;
- E. Reasonable attorney's fees and costs pursuant to 42 U.S.C. § 1988;
- F. Such other and further relief as this Court deems just and proper.

JURY DEMAND

Pursuant to Federal Rule of Civil Procedure 38(b), Plaintiff demands a trial by jury on all issues so triable. Respectfully submitted, Dated: July 13, 2026 /s/



AshLe' Penn

Pro Se

17548 NW Springville Rd. #9

Portland, OR 97229

424.242.3374

Ashlepenn.ap3@gmail.com